

Appendix E

Copy of Prosecution History of U.S. Patent No. 7,997,644

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

ATTY DOCKET NO.: 4362-138

DATE: November 24, 2008

**UTILITY PATENT APPLICATION TRANSMITTAL LETTER
AND FEE TRANSMITTAL FORM (37 CFR § 1.53(b)) FOR ELECTRONIC FILING**

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Transmitted herewith for filing under 37 CFR § 1.53(b) is:

- ☒ a patent application
☐ a Continuation ☐ a Divisional ☐ a Continuation-in-Part (CIP) Application of
prior application no.: _____; filed _____, the disclosure of which
is incorporated herein by reference in its entirety.
☐ and claims the benefit of Provisional Application No. _____; filed _____.

Inventor(s) or Application Identifier: 1. **D. Stephen Hoffman**
2. **Marcus L. Murphy**

Entitled: **GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR**

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Attached (or filed concurrently herewith) are:

1. ☒ Application Transmittal Letter and Fee Transmittal Form.
2. ☒ **21** pages of Specification (including 23 claims)
3. ☒ **5** sheets of Formal Drawings (35 USC 113)
4. ☐ Oath or Declaration
 - a. ☐ newly executed (*copy*)
 - b. ☐ copy from prior application (37 CFR 1.63(d) (*for continuation/divisional*) [**Note Box 6 Below**]
 - c. ☐ DELETION OF INVENTOR(S) (*Signed statement deleting inventor(s) named in the prior application*)
5. ☐ Application Data Sheet. See 37 CFR 1.76
6. ☐ Incorporation By Reference (*useable if box 4b is checked*)

The entire disclosure of the prior application, from which a copy of the oath or declaration is supplied under Box 4b, is considered as being part of the disclosure of the accompanying application and is hereby incorporated by reference therein.
7. ☐ Microfiche Computer Program (*Appendix*)

8. ☐ Applicant claims small entity status. See 37 CFR § 1.27.
 9. ☐ Information Disclosure Statement, listing of references, and references cited.
 10. ☐ Preliminary Amendment (*Please enter all claim amendments prior to calculating the filing fee.*)
 11. ☐ English Translation Document
 12. ☐ Certified Copy of _____ Application will follow by mail.
 13. ☐ Sequence Listing/ Sequence Listing text file.
 14. ☐ Deletion of Inventors(s) (Signed statement attached deleting inventor(s) name in the prior application. See 37 CFR 1.63(d)(2) and 1.33(b).)
 15. ☐ Nonpublication Request under 35 U.S.C. 122(b)(2)(B)(i). Applicant must attach form.
 16. ☐ Other:

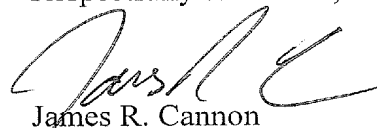
The fee has been calculated as shown below:

	Column 1 No. Filed	Column 2 No. Extra	Small Entity Rate Fee	Large Entity Rate Fee
TOTAL CLAIMS	23 - 20 =	3	* 26 = \$ 78.00	* 52 = \$
INDEP CLAIMS	4- 3 =	1	*110 = \$110.00	*220 = \$
FILING FEE			\$ 82.00	\$330.00
SEARCH FEE			\$270.00	\$540.00
EXAMINATION FEE			\$110.00	\$220.00
☐ MULTIPLE Dependent Claims Presented			+ 195 = \$	+ 390 = \$
☐ NON-ENGLISH SPECIFICATION			+ 130 = \$	+ 130 = \$
If the difference in Col. 1 is less than zero, Enter "0" in Col. 2			Total \$650.00	Total \$

EFS APPLICATION SIZE FEE	Total number of pages @ .75 rate	Extra page units (rounded up, per 50)	Small Entity Rate Fee	Large Entity Rate Fee
	* .75 =	0	* 135 = \$	* 270 = \$.00
	- 100 =			

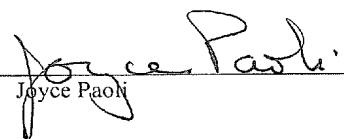
- ☒ Please charge my Deposit Account No. 50-0220 in the amount of \$650.00.
☒ The Commissioner is hereby authorized to credit overpayments or charge the appropriate fees associated with this communication to Deposit Account No. 50-0220:

Respectfully submitted,


 James R. Cannon
 Registration No. 35,839

CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on November 24, 2008.

Signature: 
 Joyce Paoli

GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Field of the Invention

[0001] This invention relates generally to seating units, and relates more particularly to reclining seating units with rocking capability.

Background of the Invention

[0002] Recliner chairs and other reclining seating units have proven to be popular with consumers. These seating units typically move from an upright position, in which the backrest is generally upright, to one or more reclined positions, in which the backrest pivots to be less upright. The movement of the seating unit between the upright and reclined positions is typically controlled by a pair of matching reclining mechanisms that are attached to the seat, backrest and base of the chair.

[0003] In recent years, furniture designers have looked for alternatives to rocking chairs that can provide a similarly relaxing repetitive motion. One alternative has been the gliding chair, or "glider", which includes structure that enables the seat portion of the chair to "glide" forwardly and rearwardly relative to its base to mimic generally the rocking motion of a rocking chair. Often the gliding structure comprises a set of swing links (usually two at the front of the chair, and two at the rear) that are pivotally attached at their upper ends to the base and extend downwardly therefrom to attach to a structure, such as a mounting bracket, that is attached to the seat. In this configuration, the seat is suspended from the base and is free to swing forwardly and rearwardly in a double pendulum-type motion in response to a forwardly or

rearwardly-directed force applied by a seated occupant. The gliding path of the chair is controlled by the configuration and mounting of the swing links. These chairs can be constructed to resemble traditional rocking chairs and thus are quite popular.

[0004] Reclining capability has been combined with gliding capability in a single unit to provide a chair that both reclines and glides. This chair includes a reclining mechanism that enables it to move between upright and one or more reclined positions, and further includes the aforementioned swing links attached between the base and the seat, armrests, or mechanism itself to enable the chair to glide. Examples of such chairs are illustrated and described in U.S. Patent Nos. 4,536,029 and 4,544,201, both to Rogers, Jr., the disclosures of which are hereby incorporated herein by reference in their entireties.

[0005] Although they are already popular seating units, it may be desirable to provide additional functionality to glider-recliners.

Summary of the Invention

[0006] As a first aspect, embodiments of the present invention are directed to a gliding and reclining seating unit. The glider-recliner comprises: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism. The actuating unit is configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same

relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

[0007] As a second aspect, embodiments of the present invention are directed to a gliding and reclining seating unit, comprising: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a linear actuator attached to the reclining mechanism. The linear actuator is configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

[0008] As a third aspect, embodiments of the present invention are directed to a gliding and reclining seating unit, comprising: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a linear actuator attached to the reclining mechanism. The linear actuator is configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally

vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases. The reclining mechanism includes a pantographic linkage on which the ottoman is mounted. In the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position. The reclining mechanism also includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the rocker cams and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

[0009] As a fourth aspect, embodiments of the present invention are directed to a gliding and reclining seating unit comprising: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism. The actuating unit is configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases. The reclining mechanism includes a backpost fixed relative to the backrest and a sequencer plate pivotally interconnected with the backrest and with the remainder of the reclining mechanism, and wherein the sequencer plate rotates in a first rotative direction relative to the backrest when the seating unit moves from the upright position

to the TV position, and wherein the backrest rotates relative to the sequencer plate in the first rotative direction when the seating unit moves from the TV position to the fully reclined position.

Brief Description of the Figures

[0010] **Figure 1** is a perspective view of a glider-recliner chair according to embodiments of the present invention.

[0011] **Figure 2** is a side section view of the chair of **Figure 1** with the chair in its fully upright position.

[0012] **Figure 3** is a side section view of the chair of **Figure 1** with the chair in its TV position.

[0013] **Figure 4** is a side section view of the chair of **Figure 1** with the chair in its fully reclined position.

[0014] **Figure 5** is a top cutaway view of the frame of the chair of **Figure 1**.

Detailed Description of Embodiments of the Invention

[0015] The present invention now is described more fully hereinafter with reference to the accompanying drawings, in which embodiments of the invention are shown. This invention may, however, be embodied in many different forms and should not be construed as limited to the embodiments set forth herein; rather, these embodiments are provided so that this disclosure will be thorough and complete, and will fully convey the scope of the invention to those skilled in the art.

[0016] Like numbers refer to like elements throughout. In the figures, the thickness of certain lines, layers, components, elements or features may be exaggerated for clarity. Broken lines illustrate optional features or operations unless specified otherwise.

[0017] The terminology used herein is for the purpose of describing particular embodiments only and is not intended to be limiting of the invention. As used herein, the singular forms "a", "an" and "the" are intended to include the plural forms as well, unless the context clearly indicates otherwise. It will be further understood that the terms "comprises"

and/or "comprising," when used in this specification, specify the presence of stated features, integers, steps, operations, elements, and/or components, but do not preclude the presence or addition of one or more other features, integers, steps, operations, elements, components, and/or groups thereof. As used herein, the term "and/or" includes any and all combinations of one or more of the associated listed items. As used herein, phrases such as "between X and Y" and "between about X and Y" should be interpreted to include X and Y. As used herein, phrases such as "between about X and Y" mean "between about X and about Y." As used herein, phrases such as "from about X to Y" mean "from about X to about Y."

[0018] Unless otherwise defined, all terms (including technical and scientific terms) used herein have the same meaning as commonly understood by one of ordinary skill in the art to which this invention belongs. It will be further understood that terms, such as those defined in commonly used dictionaries, should be interpreted as having a meaning that is consistent with their meaning in the context of the specification and relevant art and should not be interpreted in an idealized or overly formal sense unless expressly so defined herein. Well-known functions or constructions may not be described in detail for brevity and/or clarity.

[0019] It will be understood that when an element is referred to as being "on", "attached" to, "connected" to, "coupled" with, "contacting", etc., another element, it can be directly on, attached to, connected to, coupled with or contacting the other element or intervening elements may also be present. In contrast, when an element is referred to as being, for example, "directly on", "directly attached" to, "directly connected" to, "directly coupled" with or "directly contacting" another element, there are no intervening elements present. It will also be appreciated by those of skill in the art that references to a structure or feature that is disposed "adjacent" another feature may have portions that overlap or underlie the adjacent feature.

[0020] This invention is directed to seating units that have a stationary base, a seat portion, and a backrest. As used herein, the terms "forward", "forwardly", and "front" and derivatives thereof refer to the direction defined by a vector extending from the backrest toward the seat parallel to the underlying surface. Conversely, the terms "rearward", "rearwardly", and derivatives thereof refer to the direction directly opposite the forward direction; the rearward

direction is defined by a vector that extends from the seat toward the backrest parallel to the underlying surface. The terms "lateral," "laterally", and derivatives thereof refer to the direction parallel with the floor, perpendicular to the forward and rearward directions, and extending away from a plane bisecting the seating units between their armrests. The terms "medial," "inward," "inboard," and derivatives thereof refer to the direction that is the converse of the lateral direction, i.e., the direction parallel with the floor, perpendicular to the forward direction, and extending from the periphery of the seating units toward the aforementioned bisecting plane.

[0021] The seating units illustrated and described herein comprise a plurality of pivotally interconnected links. Those skilled in this art will appreciate that the pivots between links can take a variety of configurations, such as pivot pins, rivets, bolt and nut combinations, and the like, any of which would be suitable for use with the present invention. Also, the shapes of the links may vary as desired, as may the locations of certain of the pivots. Moreover, in some instances combinations of pivot points may be replaced by equivalent structures, such as "slider-crank" configurations, like those described in B. Paul, Kinematics and Dynamics of Planar Machinery 4-21 (1979).

[0022] Referring now to the figures, a swiveling glider-recliner chair, designated broadly at **10**, is illustrated in **Figures 1-5**. The chair **10** includes a base unit **11**, a seat **13** that is generally horizontally disposed above the base unit **11**, a backrest **15** that is generally vertically and disposed substantially above a rear portion of the seat **13**, and two ottomans **17a**, **17b**, which, in the upright position of **Figure 1**, are generally vertically disposed below a front portion of the seat **13**. Arms **18** are positioned on either side of the seat **13** and move in concert with the seat **13**.

[0023] A pair of mirror image reclining mechanisms **30** (only one of which is shown herein in **Figures 2-4**) are attached to the backrest **15**, the seat **13**, and the ottomans **17a**, **17b**. The reclining mechanisms **30**, which comprise a plurality of interconnected links, move the chair **10** between (a) an upright position (**Figures 1 and 2**), in which the seat **13** is generally horizontally disposed, the backrest **15** is generally vertically disposed, and the ottomans **17a**, **17b** are generally vertically disposed and positioned below the seat **13**, (b) an intermediate TV position (**Figure 3**), in which the ottomans **17a**, **17b** are generally horizontally disposed in front

of the seat **13** and the backrest **15** and the seat **13** substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position (**Figure 4**), in which the angle between the backrest **15** and the seat **13** increases. These components are described in greater detail below.

[0024] The base unit **11** includes a circular lower base **12**. A swivel unit **14** is mounted onto the top of the lower base **12**. Cross-members **18** are mounted atop the swivel unit **14**. Those skilled in this art will recognize that the base unit **11** may take other forms that provide mounting locations for the remaining components of the chair **10**; for example, the swivel unit **14** may be omitted.

[0025] Glide foundation plates **24** are mounted to the top surfaces of the cross-members **18**. A front glide link **20** is attached at a pivot **21** to the front end of the glide foundation plate **24**, and a rear glide link **25** is attached at a pivot **26** to the rear end of the glide foundation plate **24**. The front and rear glide links **20, 25** are suspended from the glide foundation plate **24** and together form a gliding mechanism **28** that provides a gliding motion to the chair **10** when it is in its upright position (**Figure 2**). Those skilled in this art will appreciate that the gliding mechanism may take other forms; it may include glide links of different shapes, or it may include a "track"-based gliding mechanism.

[0026] Because the reclining mechanisms **30** are mirror images of each other, only one reclining mechanism will be described in detail herein, with the understanding that the discussion is equally applicable to the mirror image mechanism **30**. Also, for clarity the mechanism will be described first with reference to **Figure 4** (with the mechanism **30** in its reclined position), then will be described in its upright and TV positions.

[0027] Turning now to **Figure 4**, the reclining mechanism **30** includes a generally arcuate foundation link **31**, which is attached at either end to the front and rear glide links **20, 25** at pivots **22, 27**, respectively. A generally crescent-shaped mounting bracket **32** is fixed to the foundation link **31**. A slot **32a** is present at the front end of the mounting bracket **32**. An L-shaped lower swing link **34** is attached to a lower region of the mounting bracket **32** at a pivot **36** and extends upwardly and rearwardly, then upwardly and forwardly therefrom. A straight upper

swing link **38** is attached at its lower end to the upper end of the lower swing link **34** at a pivot **40** and extends upwardly therefrom.

[0028] A backpost **48** is fixed to the backrest **15** and extends generally forwardly from the lower front end of the backrest **15**. The upper swing link **38** is attached to a forward portion of the backpost **48** at a pivot **50**. A straight coupling link **52** having a slot **52a** is attached to the backpost **48** via a pin **48a** located forwardly of the pivot **50**. The coupling link **52** extends forwardly and downwardly from the pin **48a** to attach to the front end of the mounting bracket **32** via a pin **52b** inserted into a slot **32a** in the mounting bracket **32**. A trapezoidal sequencer plate **54** is attached to the backpost **48** at a pivot **58**, and also interacts with the backpost **48** via a slot **54a** that receives a pin **48b**. The sequencer plate **54** is also attached to the rear end of the mounting bracket **32** at a pivot **56**.

[0029] Still referring to **Figure 4**, a seat frame **62**, to which the arms **18** are mounted, underlies the seat **13**. A seat adapter **66** is fixed to the seat frame **62**. The seat adapter **66** is attached to the backpost **48** at a pivot **68** that is located just rearward of the pivot **50**. An upper ottoman swing link **72** is attached to a front region of the seat adapter **66** at a pivot **74** and extends downwardly and forwardly therefrom. A tripartite lower ottoman swing link **76** is attached to a pivot **78** that is located rearwardly and downwardly from the pivot **74**; the lower ottoman swing link **76** extends generally forwardly from the pivot **78**. An upper ottoman extension link **80** is attached to the forward end of the lower ottoman swing link **76** at a pivot **82** and extends forwardly and upwardly therefrom. Also the upper ottoman extension link **80** is attached to the upper ottoman swing link at a pivot **84**. A lower ottoman extension link **86** is attached to the forward end of the upper ottoman swing link at a pivot **88** that is positioned above and forward of the pivot **84** and extends upwardly and forwardly therefrom generally parallel with the upper ottoman extension link. An outer ottoman bracket **90** is generally horizontally disposed and is attached to the upper and lower ottoman extension links **80, 86** at pivots **92, 94** respectively. The ottoman **17a** is mounted on the outer ottoman bracket **90**.

[0030] An L-shaped inner ottoman bracket **96** is attached at its lower, forward end to the lower ottoman extension link **86** at a pivot **98**. At its opposite end, the inner ottoman bracket

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96 supports the ottoman **17b**. The inner ottoman bracket **96** also includes a slot **96a** that receives a pin **80a** located on the upper ottoman extension link **80**.

[0031] A connecting link **100** is attached to the sequencer plate **54** at a pivot **102**. The connecting link **100** extends forwardly and slightly upwardly from the pivot **102** to a pivot **104** with the lower ottoman swing link **76**.

[0032] A locking mechanism **130** is attached to the reclining mechanism **30** to prevent gliding of the chair **10** when it is in the TV or fully reclined positions. The locking mechanism **130** includes a drive link **132** that is pivotally interconnected at one end to the sequencer plate **54** at a pivot **134**. The drive link **132** is a straight link that slopes downwardly and slightly forwardly from the pivot **134**. The opposite end of the drive link **132** is pivotally interconnected with a downwardly-extending projection **138** of a hook-shaped locking link **136** at a pivot **140**. The locking link **136** is attached to the mounting bracket **32** at a pivot **142**.

[0033] The chair **10** includes a power unit **112** that drives the chair **10** between its upright, TV and fully reclined positions. The power unit **112** includes a motor unit **114**, to which is attached a sleeve **116**. The sleeve extends rearwardly from the motor unit **114** and receives a retractable rod **118**. The motor unit **114** is electrically connected with an actuator (not shown), such as a toggle switch or the like, that energizes the motor unit **114** upon actuation.

[0034] The motor unit **114** is attached to a mounting bracket **110** at a pivot **120** via a mounting tab **114a** (see **Figure 5**). The mounting bracket **110** is then attached to a cross-member **108** that extends between the reclining mechanisms **30**. A bracket **106** is fixed to each of the lower ottoman swing links **76** and to the cross-member **108**.

[0035] The rod **118** of the power unit **112** is attached to a bracket **46** (**Figure 5**) at a pivot **122**. The bracket **46** is then attached to a cross-member **44** that extends between the reclining mechanisms **30**; the cross-member **44** is fixed to a bracket **42** that is in turn fixed to the upper swing link **38** of each reclining mechanism **30**.

[0036] As can be seen in **Figure 2**, in the upright position, the rod **118** of the power unit **112** is retracted into the sleeve **116**. As a result, a pantographic linkage formed by the upper and lower ottoman swing links **72**, **76** and the upper and lower ottoman extension links **80**, **86** are folded under the seat frame **62**, which positions the ottoman **17b** underneath a forward

portion of the seat frame **62** and the ottoman **17a** just forward of and below the seat frame **62** in a vertical orientation. Also, the lower and upper swing links **34, 38** are oriented such that the upper segment of the lower swing link **34** is generally horizontal, which positions the backpost **48** and, in turn, the backrest **15**, in a generally upright position.

[0037] Additionally, the sequencer plate **54** is oriented such that the pivot **102** is located downwardly and rearwardly, such that the locking link **136** of the locking mechanism **130** is raised, with a pocket **137** facing downwardly and positioned above a post **139** on the rear glide link **25**. In this position, the chair **10** is free to glide as the front and rear glide links **20, 25** are free to swing on the pivots **21, 26**, thereby enabling the reclining mechanisms **30**, the seat **13**, the backrest **15** and the ottomans **17a, 17b** to move fore-and-aft relative to the base unit **11**. During the gliding motion, the majority of the locking mechanism **130** is stationary relative to the reclining mechanisms **30**. Because the locking link **136** does not move relative to the reclining mechanism **30** as the chair **10** glides, it does not interact with the post **139**.

[0038] To move the chair **10** from the upright position to the TV position of **Figure 3**, an occupant of the chair **10** actuates the actuator, which causes the rod **118** to begin to extend from the sleeve **116**. Extension of the rod **118** forces the upper swing link **38** to rotate slightly counterclockwise (from the vantage point of **Figures 2 and 3**) about the pivot **40**. This movement draws the backpost **48** and rear end of the seat frame **62** downwardly, which causes the seat **13** to increase in pitch angle relative to the underlying surface. However, the weight of the seated occupant prevents further rotation of the upper swing link **38** at this point. Because there is little to no fore-and-aft movement of the rear end of the rod **118**, the motor unit **114** moves forwardly relative to the base unit **11**, thereby driving the lower ottoman swing link **76** counterclockwise about the pivot **78**. Rotation of the lower ottoman swing link **76** forces the upper ottoman extension link **80** forward, which in turn draws the upper ottoman swing link **72** counterclockwise around the pivot **74**. Also, the lower ottoman extension link **86** moves forwardly more than the upper ottoman extension link **80**, such that the outer ottoman bracket **90** and the inner ottoman bracket **96** rotate counterclockwise (rotation of the inner ottoman bracket **96** causes the pin **80a** to move in the slot **96a** toward the pivot **98**). The rotation of the outer and inner ottoman brackets **90, 96** induces the ottomans **17a, 17b** to rotate from a vertical orientation

to a horizontal orientation. Motion of the ottomans **17a**, **17b** ceases when a pin **72a** on the upper ottoman swing link **72** strikes the upper edge of the upper ottoman extension link **80**.

[0039] In addition, the rotation of the lower ottoman swing link **76** draws the connecting link **100** forward. Movement of the connecting link **100** rotates the sequencer plate **54** counterclockwise about the pivot **58** with the backpost **48**. The drive link **132** of the locking mechanism **130** is driven down and rotates the locking link **136** counterclockwise. The movement of the locking link **136** ceases when the pocket **137** of the locking link **136** descends sufficiently to receive the post **139** on the rear glide link **25**. In this position, relative movement between the front and rear glide links **20**, **25** and the reclining mechanisms is restrained, thereby preventing the reclining mechanisms **30**, and in turn the chair **10**, from gliding relative to the base unit **11**.

[0040] To move the chair **10** from the TV position of **Figure 3** to the fully reclined position of **Figure 4**, the occupant can continue to operate the actuator, which extends the rod **118** farther out of the sleeve **116**. When the ottomans **17a**, **17b** are fully extended, the pivots **84**, **88** and **94** are in a near "over-center" condition that helps to lock the ottomans **17a**, **17b** in an extended position. Thus, as the rod **118** continues to extend from the sleeve **116** when the chair is in the TV position, the motor unit **114** cannot move forward relative to the base unit **11** any farther, so the rear end of the rod **118** begins to move rearwardly relative to the base unit **11**, resulting in clockwise rotation of the upper swing link **38** about the pivot **40**. This rotation both drives the lower swing link **34** counterclockwise about the pivot **36** and drives the forward end of the backpost **48** upward. As a consequence, the backpost **48** rotates counterclockwise about the pivot **58** relative to the sequencer plate **54** (and to the seat adapter **66** and the seat frame **62**). Rotation of the backpost **48** and, in turn, the backrest **15**, continues until (a) the pin **48b** on the backpost **48** reaches the upper end of the slot **54a** in the sequencer plate **54** and the pin **52b** of the coupling link **52** reaches the rear end of the slot **32a** of the mounting bracket **32**. In this position, the backrest **15** has reclined relative to the seat **13** at a greater angle than in the upright and TV positions.

[0041] As can also be seen in **Figure 4**, the locking mechanism **130** continues to prevent the chair **10** from gliding as the chair **10** moves to the fully reclined position. It can also

be seen that the seat **13** rises during movement from the TV position to the fully reclined position.

[0042] The chair **10** can be returned to its TV position from the fully reclined position by the occupant operating the actuator in the reverse direction. Because of the over-center condition of the pivots **82, 84, 88**, the ottomans **17a, 17b** remain extended, such that retraction of the rod **118** draws the backrest **15** to its upright position. Once the motion of the backrest **15** is complete, the over-center condition of the pivots **84, 88** and **94** can be overcome, and the ottomans **17a, 17b** are able to retract to the upright position.

[0043] Those skilled in this art will recognize that other variations of the chair **10** are contemplated in connection with the present invention. For example, the power unit **112** may be reversed, such that the motor **114** is at the rear end of the power unit **112** and the rod **118** is at the front end. In such a case, the rod **118** would extend forwardly relative to the base unit **11** as the chair **10** moved from the upright position to the TV position, and the motor **114** would move rearwardly relative to the base unit **11** when the chair moved from the TV position to the fully reclined position. In either instance, the front end of the power unit **112** moves relative to the base unit **11** during the movement from the upright to the TV position, and the rear end of the power unit moves relative to the base unit **11** during the movement from the TV to the fully reclined position.

[0044] The foregoing is illustrative of the present invention and is not to be construed as limiting thereof. Although exemplary embodiments of this invention have been described, those skilled in the art will readily appreciate that many modifications are possible in the exemplary embodiments without materially departing from the novel teachings and advantages of this invention. Accordingly, all such modifications are intended to be included within the scope of this invention as recited in the claims. The invention is defined by the following claims, with equivalents of the claims to be included therein.

That Which is Claimed is:

1. A gliding and reclining seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base;
 - a generally upright backrest positioned above the base and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.
2. The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.
3. The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to glide while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

4. The seating unit defined in Claim 1, wherein the power actuating unit includes opposed first and second ends, and wherein the first end of the power actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the power actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

5. The seating unit defined in Claim 4, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the power actuating unit is attached with the upper swing link.

6. The seating unit defined in Claim 4, wherein the power actuating unit includes a motor and an extendable member at the first and second ends.

7. The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

8. The seating unit defined in Claim 1, wherein the base unit further comprises a swivel unit.

9. The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the glide mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

10. A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;

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a generally upright backrest positioned above the base and substantially rearward of the seat;

an extendable ottoman;

a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a linear actuator attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

11. The seating unit defined in Claim 10, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

12. The seating unit defined in Claim 10, further comprising a locking mechanism that allows the seating unit to glide on the gliding mechanism while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

13. The seating unit defined in Claim 10, wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second

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end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

14. The seating unit defined in Claim 13, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

15. The seating unit defined in Claim 10, wherein the seat rises in moving from the TV position to the fully reclined position.

16. The seating unit defined in Claim 10, further comprising a swivel unit attached to the base.

17. The seating unit defined in Claim 10, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the rocker cams and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat pivotally attached to the backpost.

18. A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide

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relative to the base unit along a longitudinal path responsive to a longitudinally-directed force;
and

a linear actuator attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position; and

wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the gliding mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

19. The seating unit defined in Claim 18, wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

20. The seating unit defined in Claim 19, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

21. A gliding and reclining seating unit, comprising:

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a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;

an extendable ottoman;

a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a backpost fixed relative to the backrest and a sequencer plate pivotally interconnected with the backrest and with the remainder of the reclining mechanism, and wherein the sequencer plate rotates in a first rotative direction relative to the backrest when the seating unit moves from the upright position to the TV position, and wherein the backrest rotates relative to the sequencer plate in the first rotative direction when the seating unit moves from the TV position to the fully reclined position.

22. The seating unit defined in Claim 21, wherein the backrest includes one of a pin and a slot, and the sequencer plate includes the other of a pin and a slot, the pin being received in the slot.

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23. The seating unit defined in Claim 22, wherein the backrest includes the pin, and the sequencer plate includes the slot.

GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Abstract of the Disclosure

A gliding and reclining seating unit includes: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism. The actuating unit is configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

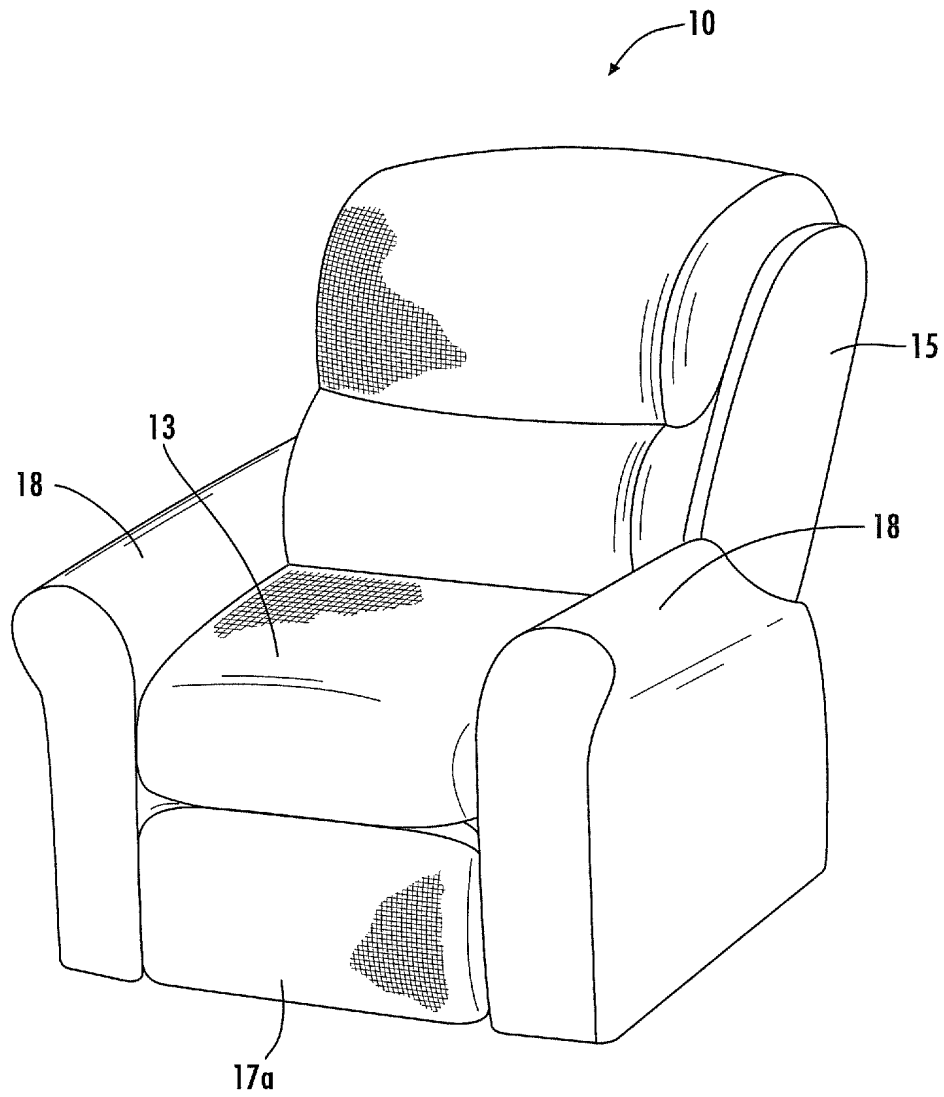
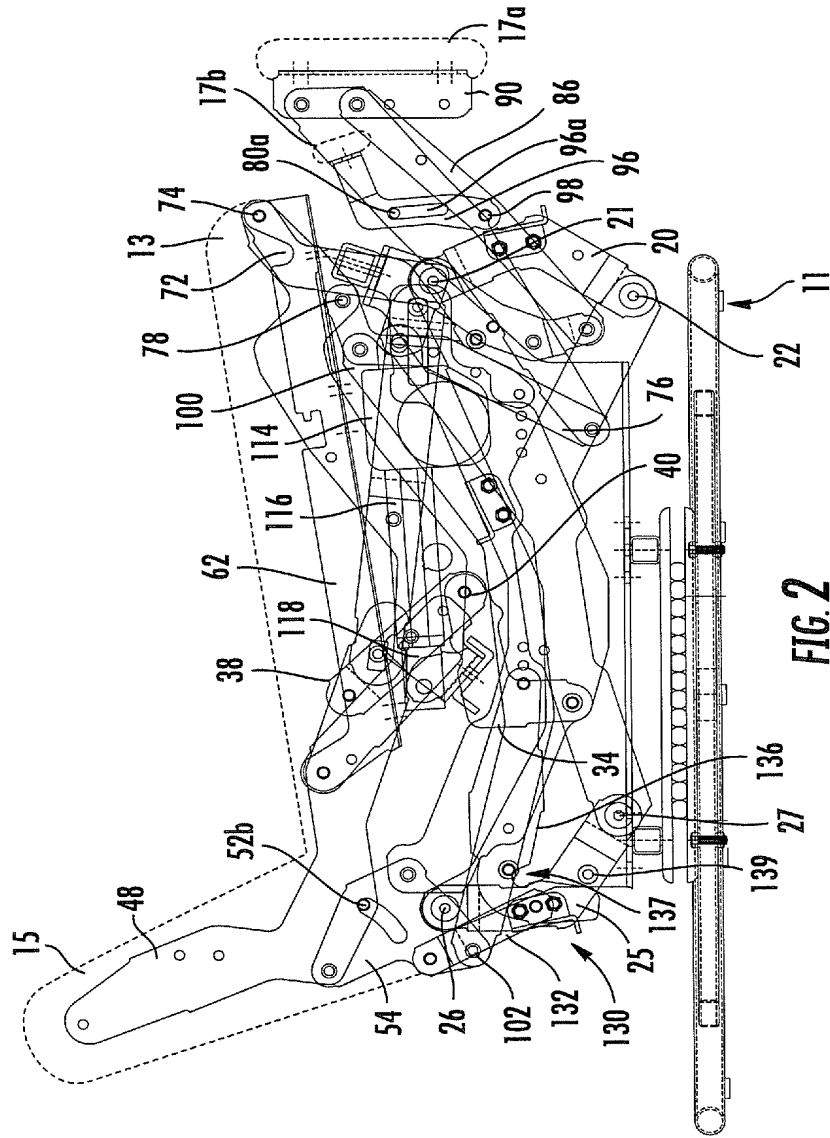


FIG. 1



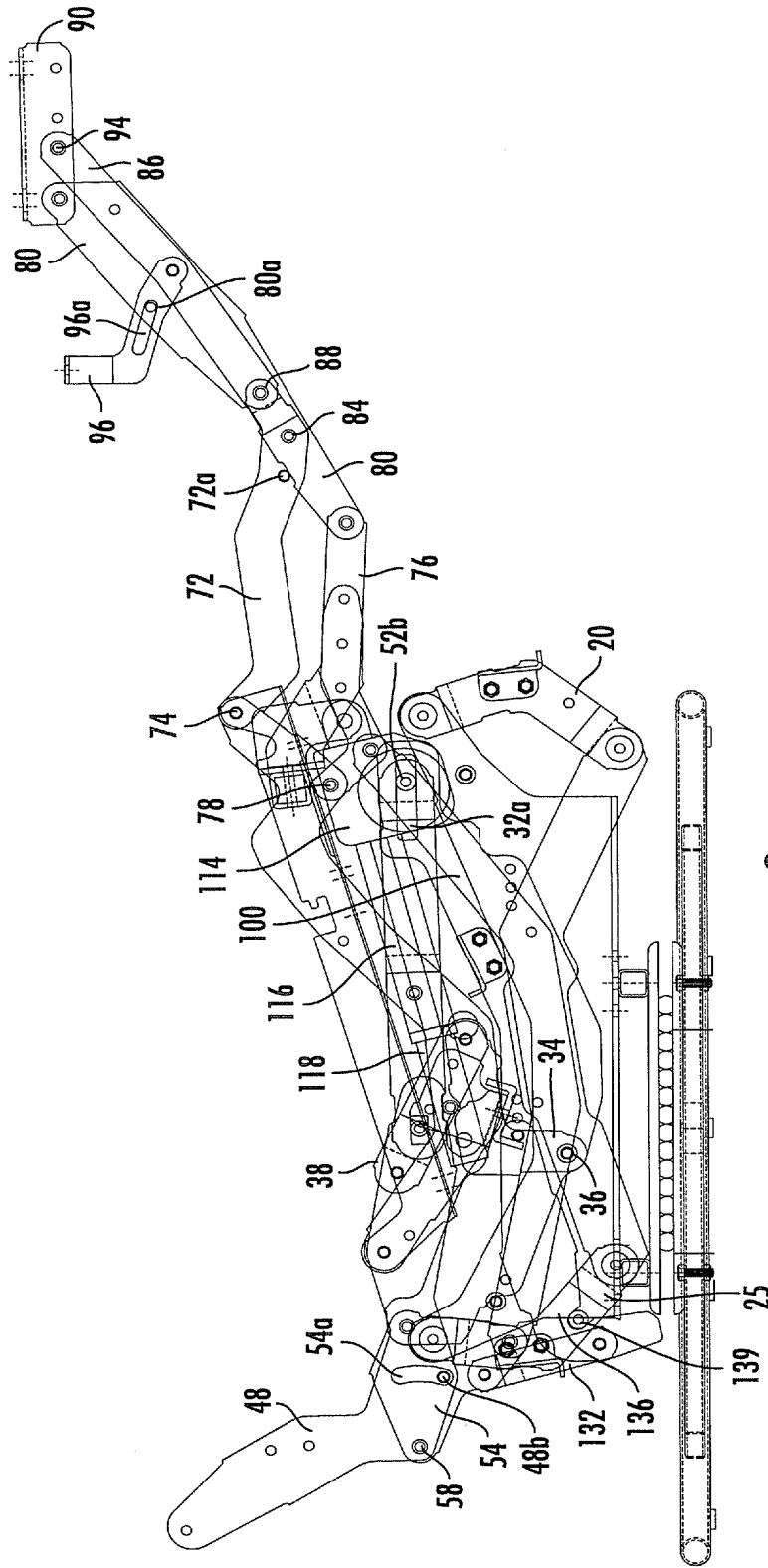


FIG. 3

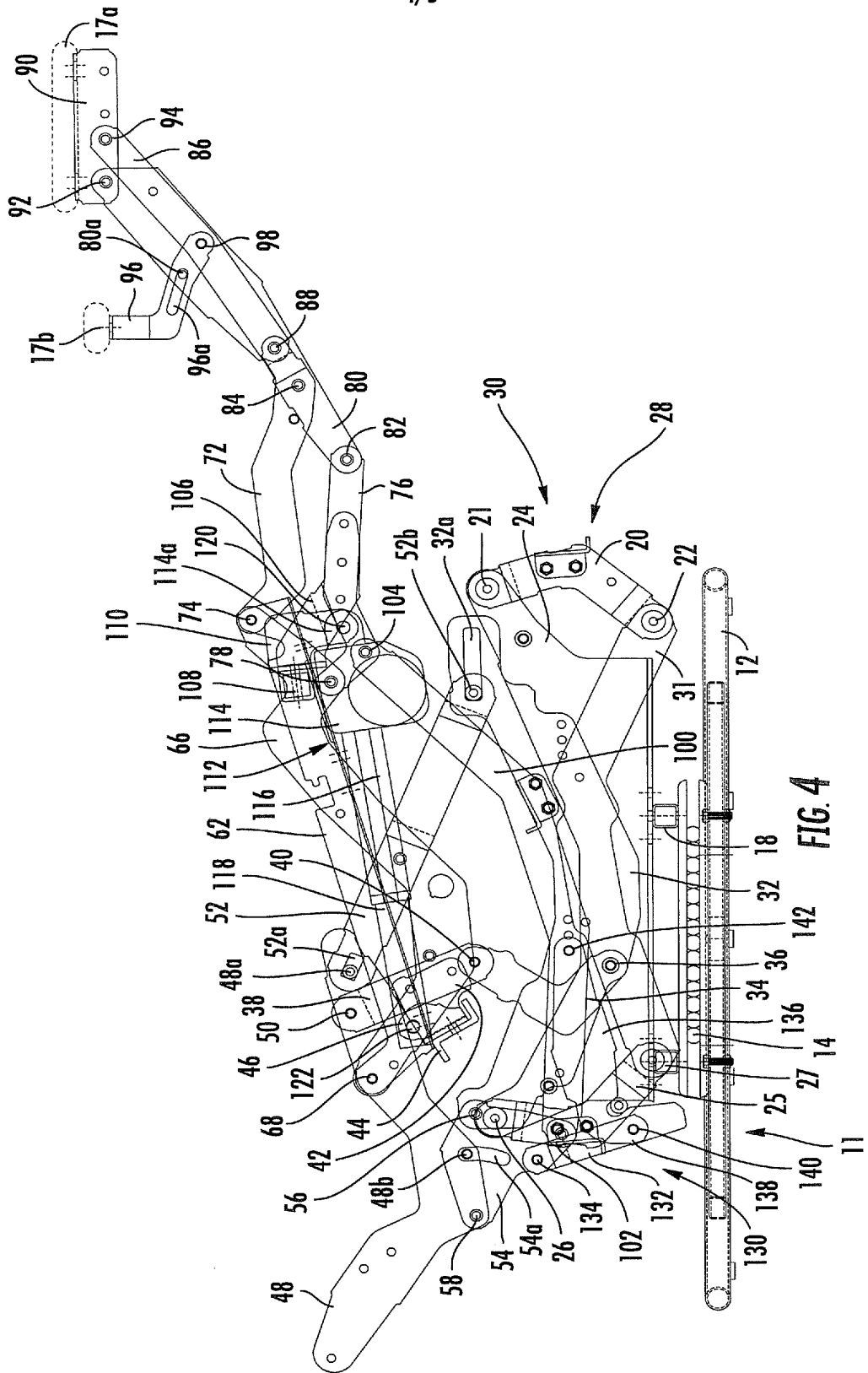


FIG. 4

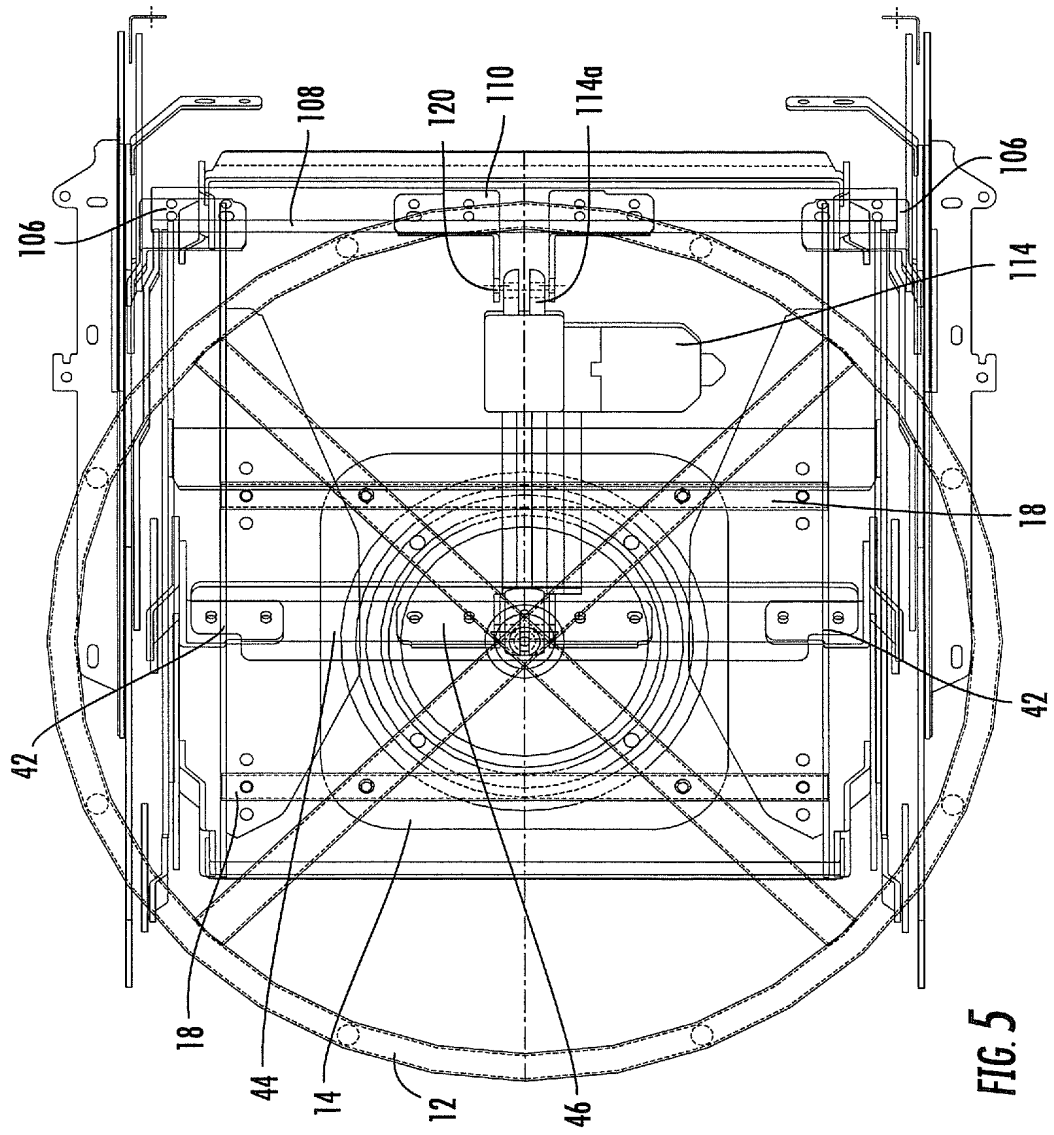


FIG. 5

Electronic Patent Application Fee Transmittal

Application Number:

Filing Date:

Title of Invention:

Gliding-Reclining Seating Unit with Power Actuator

First Named Inventor/Applicant Name:

D. Stephen Hoffman

Filer:

James R. Cannon/Joyce Paoli

Attorney Docket Number:

4362-138

Filed as Small Entity

Utility under 35 USC 111(a) Filing Fees

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Utility filing Fee (Electronic filing)	4011	1	82	82
Utility Search Fee	2111	1	270	270
Utility Examination Fee	2311	1	110	110
Pages:				
Claims:				
Claims in excess of 20	2202	3	26	78
Independent claims in excess of 3	2201	1	110	110
Miscellaneous-Filing:				

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				650

Electronic Acknowledgement Receipt

EFS ID:	4341322
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	24-NOV-2008
Filing Date:	
Time Stamp:	12:59:50
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$650
RAM confirmation Number	8233
Deposit Account	500220
Authorized User	

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Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138.pdf	2225887 b6cf369f296ee2aaeae25bcfe1825bb2dc3aa9	yes	28
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal of New Application		1	2	
	Specification		3	15	
	Claims		16	22	
	Abstract		23	23	
	Drawings-only black and white line drawings		24	28	

Warnings:**Information:**

2	Fee Worksheet (PTO-06)	fee-info.pdf	37594 c231561207c9e8c36d39233ebe75e871f298fcef	no	2
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Electronic Acknowledgement Receipt

EFS ID:	4341322
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	24-NOV-2008
Filing Date:	
Time Stamp:	12:59:50
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$650
RAM confirmation Number	8233
Deposit Account	500220
Authorized User	

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Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138.pdf	2225887 b6cf369f296ee2aaeae25bcfe1825bb2dc3aa9	yes	28
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal of New Application		1	2	
	Specification		3	15	
	Claims		16	22	
	Abstract		23	23	
	Drawings-only black and white line drawings		24	28	

Warnings:**Information:**

2	Fee Worksheet (PTO-06)	fee-info.pdf	37594 c231561207c9e8c36d39233ebe75e871f298fcef	no	2
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Total Files Size (in bytes):	2263481
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New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.

Filing Date: 11/24/08

Approved for use through 7/31/2006. OMB 0651-0032

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PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875					Application or Docket Number 12/276,567	
APPLICATION AS FILED – PART I						
(Column 1)		(Column 2)		SMALL ENTITY		OR
OTHER THAN SMALL ENTITY						
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)	RATE (\$)	FEE (\$)
BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A	82	N/A	
SEARCH FEE (37 CFR 1.16(k), (i), or (m))	N/A	N/A	N/A	270	N/A	
EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A	110	N/A	
TOTAL CLAIMS (37 CFR 1.16(i))	23	minus 20 =	3	x\$26	78	x\$52
INDEPENDENT CLAIMS (37 CFR 1.16(h))	4	minus 3 =	1	x\$110	110	x\$220
APPLICATION SIZE FEE (37 CFR 1.16(s))		If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$260 (\$130 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR				
MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))				195	390	
				TOTAL	650	TOTAL
* If the difference in column 1 is less than zero, enter "0" in column 2.						
APPLICATION AS AMENDED – PART II						
(Column 1)		(Column 2)		(Column 3)		SMALL ENTITY
OTHER THAN SMALL ENTITY						OR
AMENDMENT A	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	RATE (\$)
	Total (37 CFR 1.16(i))	Minus	**	=	X =	X =
	Independent (37 CFR 1.16(h))	Minus	***	=	X =	X =
	Application Size Fee (37 CFR 1.16(s))					
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))			N/A		N/A
				TOTAL		TOTAL
			ADD'T FEE		ADD'T FEE	
(Column 1)		(Column 2)		(Column 3)		SMALL ENTITY
OTHER THAN SMALL ENTITY						OR
AMENDMENT B	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	RATE (\$)
	Total (37 CFR 1.16(i))	Minus	**	=	X =	X =
	Independent (37 CFR 1.16(h))	Minus	***	=	X =	X =
	Application Size Fee (37 CFR 1.16(s))					
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))			N/A		N/A
				TOTAL		TOTAL
			ADD'T FEE		ADD'T FEE	
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.						

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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APPLICATION NUMBER	FILING or 371(c) DATE	GRP ART UNIT	FIL FEE REC'D	ATTY. DOCKET NO	TOT CLAIMS	IND CLAIMS
12/276,567	11/24/2008	3636	650	4362-138	23	4

CONFIRMATION NO. 4351

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

FILING RECEIPT



Date Mailed: 12/10/2008

Receipt is acknowledged of this non-provisional patent application. The application will be taken up for examination in due course. Applicant will be notified as to the results of the examination. Any correspondence concerning the application must include the following identification information: the U.S. APPLICATION NUMBER, FILING DATE, NAME OF APPLICANT, and TITLE OF INVENTION. Fees transmitted by check or draft are subject to collection. Please verify the accuracy of the data presented on this receipt. **If an error is noted on this Filing Receipt, please submit a written request for a Filing Receipt Correction. Please provide a copy of this Filing Receipt with the changes noted thereon. If you received a "Notice to File Missing Parts" for this application, please submit any corrections to this Filing Receipt with your reply to the Notice. When the USPTO processes the reply to the Notice, the USPTO will generate another Filing Receipt incorporating the requested corrections**

Applicant(s)

D. Stephen Hoffman, Residence Not Provided;
Marcus L. Murphy, Residence Not Provided;

Power of Attorney: None

Domestic Priority data as claimed by applicant

Foreign Applications

If Required, Foreign Filing License Granted: 12/04/2008

The country code and number of your priority application, to be used for filing abroad under the Paris Convention, is **US 12/276,567**

Projected Publication Date: To Be Determined - pending completion of Missing Parts

Non-Publication Request: No

Early Publication Request: No

**** SMALL ENTITY ****

Title

Gliding-Reclining Seating Unit with Power Actuator

Preliminary Class

297

PROTECTING YOUR INVENTION OUTSIDE THE UNITED STATES

Since the rights granted by a U.S. patent extend only throughout the territory of the United States and have no effect in a foreign country, an inventor who wishes patent protection in another country must apply for a patent in a specific country or in regional patent offices. Applicants may wish to consider the filing of an international application under the Patent Cooperation Treaty (PCT). An international (PCT) application generally has the same effect as a regular national patent application in each PCT-member country. The PCT process **simplifies** the filing of patent applications on the same invention in member countries, but **does not result** in a grant of "an international patent" and does not eliminate the need of applicants to file additional documents and fees in countries where patent protection is desired.

Almost every country has its own patent law, and a person desiring a patent in a particular country must make an application for patent in that country in accordance with its particular laws. Since the laws of many countries differ in various respects from the patent law of the United States, applicants are advised to seek guidance from specific foreign countries to ensure that patent rights are not lost prematurely.

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For information on preventing theft of your intellectual property (patents, trademarks and copyrights), you may wish to consult the U.S. Government website, <http://www.stopfakes.gov>. Part of a Department of Commerce initiative, this website includes self-help "toolkits" giving innovators guidance on how to protect intellectual property in specific countries such as China, Korea and Mexico. For questions regarding patent enforcement issues, applicants may call the U.S. Government hotline at 1-866-999-HALT (1-866-999-4158).

LICENSE FOR FOREIGN FILING UNDER**Title 35, United States Code, Section 184****Title 37, Code of Federal Regulations, 5.11 & 5.15****GRANTED**

The applicant has been granted a license under 35 U.S.C. 184, if the phrase "IF REQUIRED, FOREIGN FILING LICENSE GRANTED" followed by a date appears on this form. Such licenses are issued in all applications where the conditions for issuance of a license have been met, regardless of whether or not a license may be required as

set forth in 37 CFR 5.15. The scope and limitations of this license are set forth in 37 CFR 5.15(a) unless an earlier license has been issued under 37 CFR 5.15(b). The license is subject to revocation upon written notification. The date indicated is the effective date of the license, unless an earlier license of similar scope has been granted under 37 CFR 5.13 or 5.14.

This license is to be retained by the licensee and may be used at any time on or after the effective date thereof unless it is revoked. This license is automatically transferred to any related applications(s) filed under 37 CFR 1.53(d). This license is not retroactive.

The grant of a license does not in any way lessen the responsibility of a licensee for the security of the subject matter as imposed by any Government contract or the provisions of existing laws relating to espionage and the national security or the export of technical data. Licensees should apprise themselves of current regulations especially with respect to certain countries, of other agencies, particularly the Office of Defense Trade Controls, Department of State (with respect to Arms, Munitions and Implements of War (22 CFR 121-128)); the Bureau of Industry and Security, Department of Commerce (15 CFR parts 730-774); the Office of Foreign Assets Control, Department of Treasury (31 CFR Parts 500+) and the Department of Energy.

NOT GRANTED

No license under 35 U.S.C. 184 has been granted at this time, if the phrase "IF REQUIRED, FOREIGN FILING LICENSE GRANTED" DOES NOT appear on this form. Applicant may still petition for a license under 37 CFR 5.12, if a license is desired before the expiration of 6 months from the filing date of the application. If 6 months has lapsed from the filing date of this application and the licensee has not received any indication of a secrecy order under 35 U.S.C. 181, the licensee may foreign file the application pursuant to 37 CFR 5.15(b).



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
12/276,567	11/24/2008	D. Stephen Hoffman	4362-138

CONFIRMATION NO. 4351

FORMALITIES LETTER



OC000000033455939

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Date Mailed: 12/10/2008

NOTICE TO FILE MISSING PARTS OF NONPROVISIONAL APPLICATION

FILED UNDER 37 CFR 1.53(b)

Filing Date Granted

Items Required To Avoid Abandonment:

An application number and filing date have been accorded to this application. The item(s) indicated below, however, are missing. Applicant is given **TWO MONTHS** from the date of this Notice within which to file all required items and pay any fees required below to avoid abandonment. Extensions of time may be obtained by filing a petition accompanied by the extension fee under the provisions of 37 CFR 1.136(a).

- The oath or declaration is missing.

A properly signed oath or declaration in compliance with 37 CFR 1.63, identifying the application by the above Application Number and Filing Date, is required.

Note: If a petition under 37 CFR 1.47 is being filed, an oath or declaration in compliance with 37 CFR 1.63 signed by all available joint inventors, or if no inventor is available by a party with sufficient proprietary interest, is required.

The applicant needs to satisfy supplemental fees problems indicated below.

The required item(s) identified below must be timely submitted to avoid abandonment:

- To avoid abandonment, a surcharge (for late submission of filing fee, search fee, examination fee or oath or declaration) as set forth in 37 CFR 1.16(f) of **\$65** for a small entity in compliance with 37 CFR 1.27, must be submitted with the missing items identified in this notice.

SUMMARY OF FEES DUE:

Total additional fee(s) required for this application is **\$65** for a small entity

- **\$65** Surcharge.

Replies should be mailed to:

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria VA 22313-1450

Registered users of EFS-Web may alternatively submit their reply to this notice via EFS-Web.
<https://sportal.uspto.gov/authenticate/AuthenticateUserLocalEPF.html>

For more information about EFS-Web please call the USPTO Electronic Business Center at **1-866-217-9197** or visit our website at <http://www.uspto.gov/ebc>.

If you are not using EFS-Web to submit your reply, you must include a copy of this notice.

/bnguyen/

Office of Data Management, Application Assistance Unit (571) 272-4000, or (571) 272-4200, or 1-888-786-0101

Attorney Docket No. 4362-138

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No.: 4351

Application No.: 12/276,567

Group Art Unit: 3636

Filed: November 24, 2008

For: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Date: January 14, 2009

Mail Stop MISSING PARTS

Commissioner for Patents

P.O. Box 1450

Alexandria, VA 22313-1450

RESPONSE TO NOTICE TO FILE MISSING PARTS

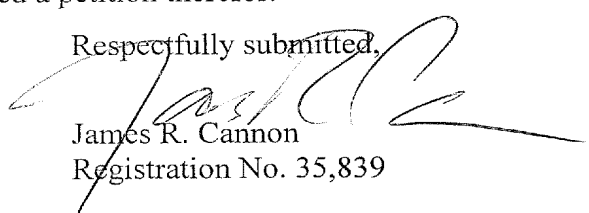
Sir:

In response to the Notice to File Missing Parts of Application-Filing Date Granted (PTO-1533), mailed December 10, 2008 regarding the above-referenced patent application, enclosed is an executed Declaration and Power of Attorney document (4 pages) for this application.

A copy of the Notice and a check in the amount of \$65.00 for the surcharge under 37 C.F.R. § 1.16(f), is also enclosed. This amount is believed to be correct. However, the Commissioner is hereby authorized to charge any deficiency or credit any overpayment to Deposit Account No. 50-0220.

If any extension of time for the accompanying response or submission is required, Applicant requests that this be considered a petition therefor.

Respectfully submitted,


James R. Cannon

Registration No. 35,839

Myers Bigel Sibley & Sajovec, P.A.

P. O. Box 37428

Raleigh, North Carolina 27627

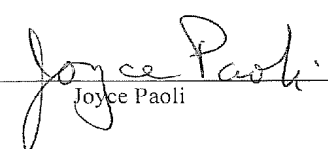
Telephone: (919) 854-1400

Facsimile: (919) 854-1401

Customer No. 20792

CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on January 14, 2009.

Signature: 

Joyce Paoli

DECLARATION AND POWER OF ATTORNEY FOR PATENT APPLICATION

As a below named inventor, I hereby declare that:

My residence, post office address and citizenship are as stated below next to my name.

I believe I am an original, first and joint inventor of the subject matter which is claimed and for which a patent is sought on the invention entitled **GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR**

the specification of which

☐ is attached hereto

OR

☒ was filed on November 24, 2008 as United States Application No. 12/276,567 or PCT International Application Number _____ and was amended on _____ (if applicable).

I hereby state that I have reviewed and understand the contents of the above identified specification, including the claims, as amended by any amendment specifically referred to above.

I acknowledge the duty to disclose information which is material to patentability as defined in 37 C.F.R. 1.56, including for continuation-in-part applications, material information which became available between the filing date of the prior application and the national or PCT international filing date of the continuation-in-part application.

I hereby claim foreign priority benefits under 35 U.S.C. 119(a)-(d) or (f), or 365(b) of any foreign application(s) for patent, inventor's or plant breeder's rights certificate(s), or 365(a) of any PCT international application which designated at least one country other than the United States of America, listed below and have also identified below, by checking the box, any foreign application for patent, inventor's or plant breeder's rights certificate(s), or any PCT international application having a filing date before that of the application on which priority is claimed.

			☐ Yes ☐ No
Number	Country	MM/DD/YYYY Filed	Priority Claimed
			☐ Yes ☐ No
Number	Country	MM/DD/YYYY Filed	Priority Claimed

I hereby declare that all statements made herein of my own knowledge are true and that all statements made on information and belief are believed to be true; and further that these statements were made with the knowledge that willful false statements and the like so made are punishable by fine or imprisonment, or both, under 18 U.S.C. 1001 and that such willful false statements may jeopardize the validity of the application or any patent issued thereon.

POWER OF ATTORNEY: As a named inventor, I hereby appoint the following registered attorney(s) to prosecute this application and transact all business in the Patent and Trademark Office connected therewith. I also appoint the following registered attorney(s) to represent me before all competent International Authorities in connection with any and all international applications filed by me with an appropriate receiving office claiming priority to the U.S. application. I also appoint the following registered attorney(s) to make or receive payment on my behalf in connection with the filing of such international applications.

Customer No. 20792
Myers Bigel Sibley & Sajovec, P.A.
P. O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

Send correspondence to:

Customer No. 20792
James R. Cannon
Myers Bigel Sibley & Sajovec, P.A.
P. O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

Direct telephone calls to:

James R. Cannon
(919) 854-1400

Facsimile:

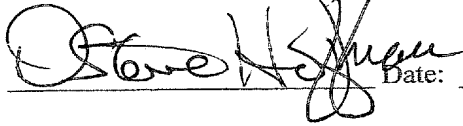
(919) 854-1401

Full name of first inventor:

D. Stephen Hoffman

Inventor's

Signature:



Date:

1-07-09

Residence:

High Point, North Carolina

Citizenship:

the United States of America

Mailing Address:

222 Cascade Drive, High Point, North Carolina

Full name of second inventor: **Marcus L. Murphy**

Inventor's
Signature: Marcus L. Murphy Date: 1-7-09

Residence: Lexington, North Carolina

Citizenship: the United States of America

Mailing Address: 230 Lowe Drive, Lexington, North Carolina

Electronic Patent Application Fee Transmittal

Application Number:	12276567			
Filing Date:	24-Nov-2008			
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Joyce Paoli			
Attorney Docket Number:	4362-138			
Filed as Small Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Late filing fee for oath or declaration	2051	1	65	65
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Miscellaneous:				
Total in USD (\$)				65

Electronic Acknowledgement Receipt

EFS ID:	4602803
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	13-JAN-2009
Filing Date:	24-NOV-2008
Time Stamp:	14:19:49
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$65
RAM confirmation Number	7830
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:

Charge any Additional Fees required under 37 C.F.R. Section 1.21 (Miscellaneous fees and charges)

File Listing:					
Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138.pdf	375509 764d927536b4651bf888c4086c4e40474b7f4377	yes	5
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Applicant Response to Pre-Exam Formalities Notice		1	1	
	Oath or Declaration filed		2	5	
Warnings:					
Information:					
2	Fee Worksheet (PTO-06)	fee-info.pdf	30023 8c8fabcb118b1f044c0a61457e0759621548ff2706	no	2
Warnings:					
Information:					
Total Files Size (in bytes):			405532		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					



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APPLICATION NUMBER	FILING or 371(c) DATE	GRP ART UNIT	FIL FEE REC'D	ATTY. DOCKET NO	TOT CLAIMS	IND CLAIMS
12/276,567	11/24/2008	3636	715	4362-138	23	4

CONFIRMATION NO. 4351

UPDATED FILING RECEIPT

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627



Date Mailed: 01/21/2009

Receipt is acknowledged of this non-provisional patent application. The application will be taken up for examination in due course. Applicant will be notified as to the results of the examination. Any correspondence concerning the application must include the following identification information: the U.S. APPLICATION NUMBER, FILING DATE, NAME OF APPLICANT, and TITLE OF INVENTION. Fees transmitted by check or draft are subject to collection. Please verify the accuracy of the data presented on this receipt. **If an error is noted on this Filing Receipt, please submit a written request for a Filing Receipt Correction. Please provide a copy of this Filing Receipt with the changes noted thereon. If you received a "Notice to File Missing Parts" for this application, please submit any corrections to this Filing Receipt with your reply to the Notice. When the USPTO processes the reply to the Notice, the USPTO will generate another Filing Receipt incorporating the requested corrections**

Applicant(s)

D. Stephen Hoffman, High Point, NC;
Marcus L. Murphy, Lexington, NC;

Power of Attorney: The patent practitioners associated with Customer Number 20792

Domestic Priority data as claimed by applicant

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If Required, Foreign Filing License Granted: 12/04/2008

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Projected Publication Date: 05/27/2010

Non-Publication Request: No

Early Publication Request: No

**** SMALL ENTITY ****

Title

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Preliminary Class

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NOT GRANTED

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known	
				Application Number	12/276,567
				Filing Date	November 24, 2008
				First Named Inventor	D. Stephen Hoffman et al.
				Art Unit	3636
				Examiner Name	TBA
Sheet	A1	of	A2	Attorney Docket Number	4362-138

U.S. PATENT DOCUMENTS AND APPLICATIONS					
Examiner Initials*	Cite No.	Document Number	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)			
	1.	US- 7,311,359 B2	12-25-2007	Smith	
	2.	US- 7,293,834 B2	11-13-2007	Riach et al.	
	3.	US- 7,188,904 B2	03-13-2007	Bruck et al.	
	4.	US- 7,083,235 B2	08-01-2006	Grimm et al.	
	5.	US- 6,948,777 B2	09-27-2005	Marshall et al.	
	6.	US- 6,612,650 B1	09-02-2003	Ambrosio et al.	
	7.	US- 6,540,291	04-01-2003	Hoffman et al.	
	8.	US- 6,491,342 B1	12-10-2002	Smith	
	9.	US- 5,931,535 A	08-03-1999	Sweet	
	10.	US- 5,884,970 A	03-23-1999	Howard	
	11.	US- 5,086,769	02-11-1992	Vianello et al.	
	12.	US- 5,007,679	04-16-1991	Mizelle	
	13.	US- 4,915,444	04-10-1990	Rogers Jr.	
	14.	US- 4,813,743	03-21-1989	Mizelle	
	15.	US- 4,722,566	02-02-1988	Castellini	
	16.	US- 4,696,512	09-29-1987	Burnett et al.	
	17.	US- 4,691,964	09-08-1987	Morgan	
	18.	US- 4,682,815 A	07-28-1987	Steifensand	
	19.	US- 4,681,365	07-21-1987	Pine	
	20.	US- 4,674,794	06-23-1987	Pine	
	21.	US- 4,386,803	06-07-1983	Gilderbloom	
	22.	US- 4,307,912	12-29-1981	Watt et al.	
	23.	US- 3,863,980	02-04-1975	Ciner	
	24.	US- 3,622,202	11-23-1971	Brown	
	25.	US- 3,383,135	05-14-1968	Posh	
	26.	US- 3,147,038	09-01-1964	Barabas	
	27.	US- 2,714,922	08-09-1955	McKibban et al.	
	28.	US- 2,526,623 A	10-24-1950	Maurer	
	29.	US- 0,507,270 A	10-24-1893	Name Not Available	
	30.	US- 2006/0082195 A1	04-20-2006	Jiang	

FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No.	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
		Country Code, Number, Kind Code (if known)				
	31.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstract

Examiner Signature		Date Considered	
--------------------	--	-----------------	--

*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known	
				Application Number	12/276,567
				Filing Date	November 24, 2008
				First Named Inventor	D. Stephen Hoffman et al.
				Art Unit	3636
				Examiner Name	TBA
Sheet	A2	of	A2	Attorney Docket Number	4362-138

NON PATENT LITERATURE DOCUMENTS			
Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T
	32.	Lusch Brochure: "Functional Fitting and Tubular steel frames for Relaxing Chairs (11 pages), Functional Fittings for Sofabeds and Beds (10 pages), Bed Fitting (5 pages) and Upholstery joints and accessories for furniture (9 pages)", (available before April 7, 2006).	Yes
	33.	"Stawett Functional Bed Mechanisms Brochure", pp. 3-93 (2001).	Yes

iDoc# 775337

Examiner Signature		Date Considered	
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

GB2106777

Publication Title:

A doubly extensible bed or reclining chair having an extended foot member

Abstract:

Abstract of GB 2106777

(A) A doubly extensible bed or reclining chair, including a basic frame (10), a seat frame (20) capable of being extended from the basic frame with a back member (11) hingedly connected to the seat frame, and a front box member (30) capable of being extended from the seat frame, characterised in that a foot frame (36) is inserted in the front box member (30) and is hingedly connected on either side to the side panels (32) of the front box member (30) by means of two control levers (33, 34) and the foot frame (36) is outwardly pivotable from the front box member (30) beyond the end panel (30a) of the front box member (30) by the control levers (33, 34) to further extend the reclining surface.

Courtesy of <http://v3.espacenet.com>

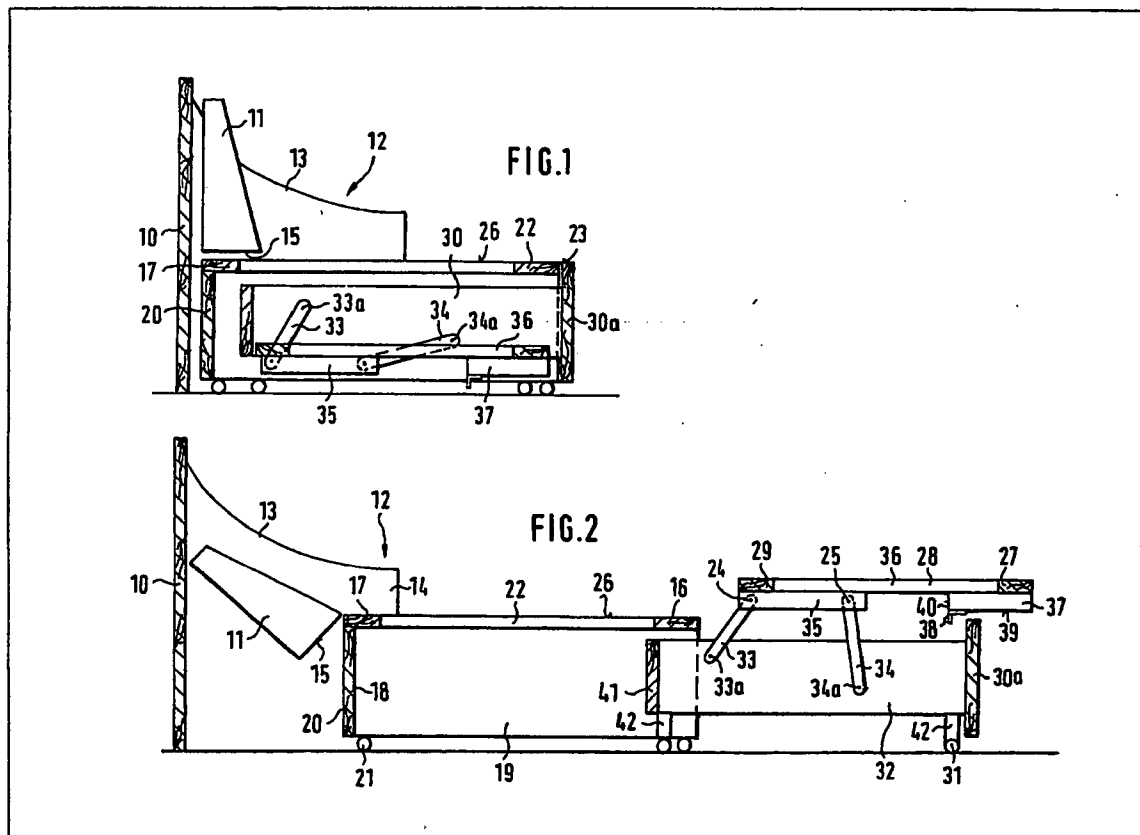
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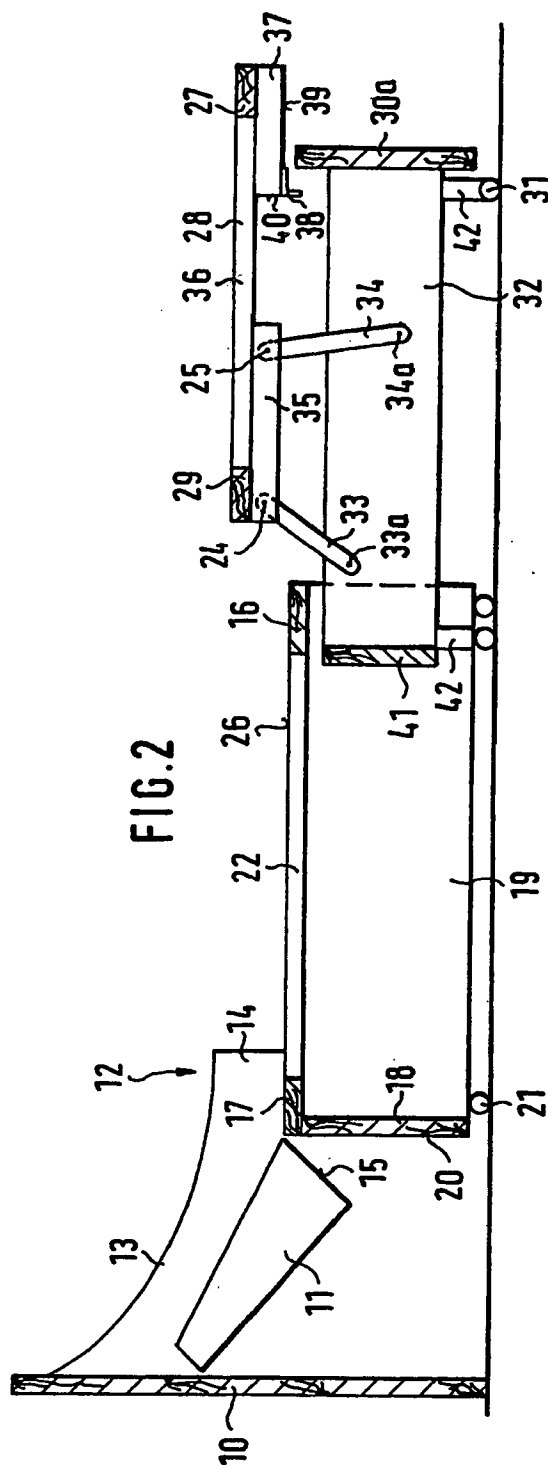
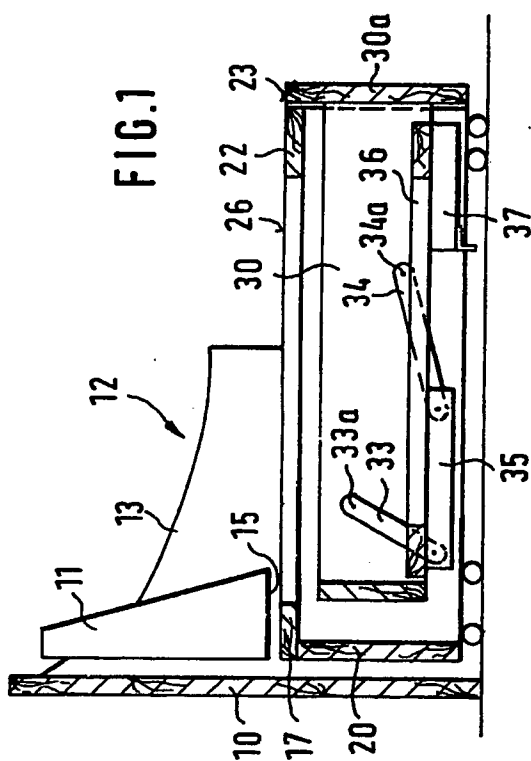
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(54) A doubly extensible bed or reclining chair having an extended foot member

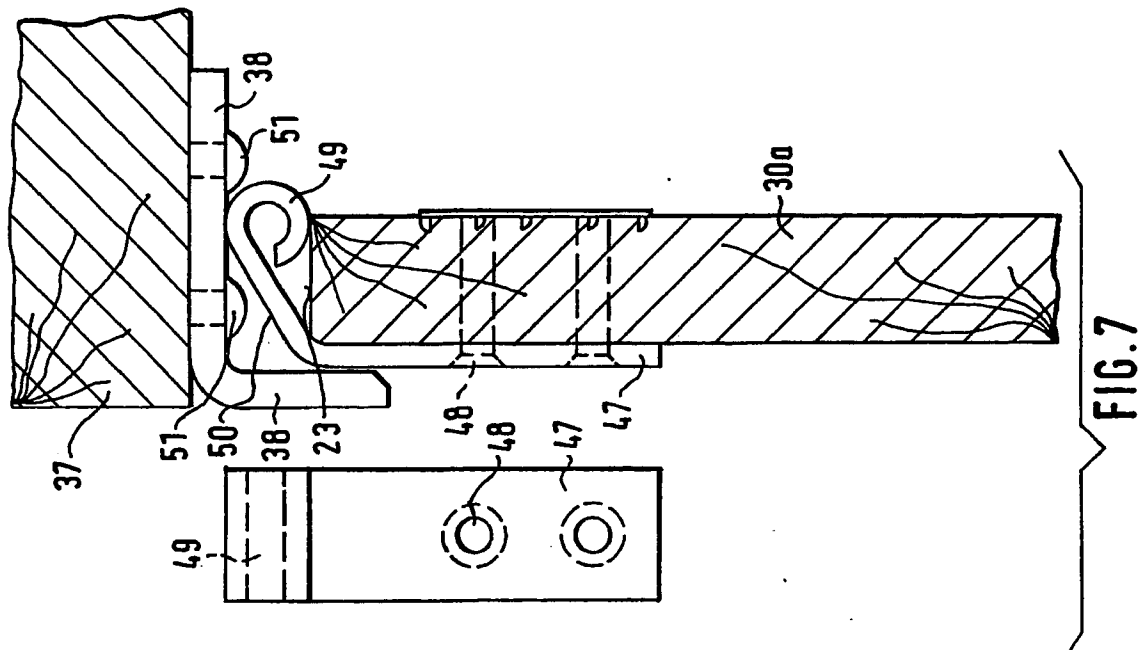
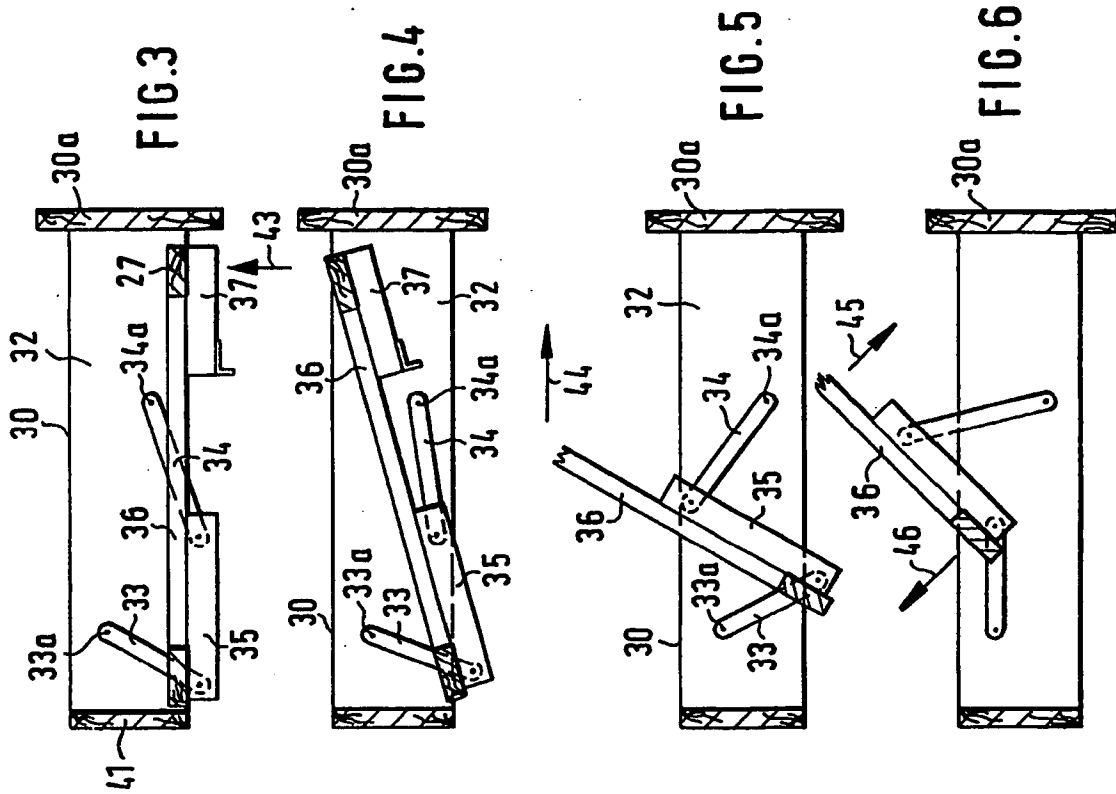
(57) A doubly extensible bed or reclining chair, including a basic frame (10), a seat frame (20) capable of being extended from the basic frame with a back member (11) hingedly connected to the seat frame, and a front box member (30) capable of being extended from the seat frame, characterised in that a foot frame (36) is inserted in the front box member (30) and is hingedly connected on either side to the side panels (32) of the front box member (30) by means of two control levers (33, 34) and the foot frame (36) is outwardly pivotable from the front box member (30) beyond the end panel (30a) of the front box member (30) by the control levers (33, 34) to further extend the reclining surface.



GB 2 106 777 A



2106777



SPECIFICATION

A doubly extensible bed or reclining chair having an extended foot member

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The invention relates to a doubly extensible bed or reclining chair, including a basic frame, a seat frame capable of being extended from the basic frame with a back portion or member hingedly connected to the seat frame, and a front box member capable of being

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extended from the seat frame. Such double reclining chairs can be used, and are used, selectively as pieces of furniture for sitting or reclining purposes. Thus, for example, German Offenlegungsschrift No. 1 529 585 describes a chair which can be converted into a reclining bed as required. In order to convert the chair into a bed, sliding box members are extended from the seat frame, thereby causing the seat area to be lengthened so as to produce a reclining area. However, the length of the reclining area is dependent upon the width of the seat area. In order to provide a comfortable sitting position, the seat area cannot be made just any random width at all since, instead, it is in a predetermined ratio with the width and height of the back rest. In turn, the length of the extensible sliding box members is dependent upon the width of the seat area. Conventionally, the reclining area is approximately 1.80 to 2.00 m long when the sliding box members are extended. However, in many cases, it has been found that this reclining area is often not long enough.

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The present invention seeks to provide a doubly extensible bed or reclining chair of the above-mentioned type, in which the reclining area can be extended by simple means beyond the length predetermined by the slide-in box members.

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This object is achieved, in that a foot frame is inserted in the front box member and is hingedly connected to the side panels of the front box member by means of two control levers on either side, and the foot frame is outwardly pivotable from the front box member beyond the end panel of the front box member at the control levers.

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These features permit a double reclining chair to be created, the foot frame of which can be pivoted outwardly beyond the end panel of the front box member. The reclining area is therefore extended by simple means without the seat box member or the front box member having to be extended. The comfortable sitting position predetermined by the width of the seat box member is therefore retained. Also, there is no additional outlay of material.

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Thus, according to the present invention there is provided a doubly extensible bed or reclining chair, including a basic frame, a seat frame capable of being extended from the basic frame with a back member hingedly connected to the seat frame, and a front box member capable of being extended from the seat frame, characterised in that a foot frame is inserted in the front box member and is hingedly connected on either side, to the side panels of the front box member by means of two control levers, and the foot frame is outwardly pivotable from the front box member beyond the end panel of the front

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box member at the control levers.

Further arrangements and embodiments of the invention are provided by the features described in the subclaims.

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The invention will be described further, by way of example, with reference to the accompanying drawings, in which:-

Figure 1 is a part sectional, elevational view of a double reclining chair showing the seat and front box members in their retracted positions;

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Figure 2 illustrates the double reclining chair of *Figure 1* but with the seat and front box members in their extended positions;

Figure 3 illustrates the front box member of the double reclining chair of *Figures 1* and *2* and shows the foot frame in its inserted position;

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Figure 4 illustrates the front box member of *Figure 3* and shows the foot frame raised for the outwardly pivotal movement;

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Figure 5 illustrates the front box member of *Figure 3* and shows the foot frame during the outwardly pivotal movement;

Figure 6 illustrates the front box member of *Figure 3* and shows the foot frame being located on the end panel;

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Figure 7 is an enlarged fragmentary detail of the end panel of the front box member showing a locking plate and a bracket mounted thereon.

A double reclining chair 12 is illustrated in *Figures 1* and *2* and comprises a basic frame 10 and a box-type seat 20. The basic frame 10 has a padded back rest 11 at its rear end and has arm rests 13 on its sides. In this case, the arm rests 13 define the upper boundary for side members 14.

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Box-type seat 20 comprises an upper batten-type frame 22, having a front frame panel 16 and a rear frame panel 17, and side panels 19, between which the rear supports 18 form an open end for the box-type seat 20. In the retracted position, the rear frame panel 17 is located below lower edge 15 of the padded back rest 11. The box-type seat 20 rests on castors 21 which are preferably four in number, and on which the seat 20 is capable of being extended from the basic frame 10 and of being retracted therein.

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A front box member 30 is slidable into and out of the box-type seat 20 - the box-type seat 20 being thus open at its front end. The front box member 30 is a box-type frame which is open at the top and bottom and which comprises side panels 32, a front end panel 30a and a rear end panel 41. The front end panel 30a also acts as the front end of the box-type seat 20 in the retracted position. In order that the front box member 30 can be inserted into the box-type seat 20, its side panels 32 and the rear end panel 41 are smaller than the side panels 19 of the box-type seat 20. The front box member 30 is provided with feet 42 which run on castors 31; the front box member 30 is capable of being retracted into and extended out of the box-type seat 20 on these castors 31. When the front box member 30 is in its retracted position, the box-type seat 20 is terminated by the end panel 30a. The upper end 23 of the front end panel 30a therefore terminates the upper edge 26 of the batten-type frame 22 of the box-type

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seat 20.

A foot frame 36 is inserted into the front box member 30. The foot frame 36 comprises a front frame panel 27, side frame panels 28 and a rear frame panel 29. On its two sides, the foot frame 36 is hingedly connected to the side panels 32 of the front box member 30 by means of a rear control lever 33 in a fixed pivot point 33a and by means of front control levers 34 in fixed pivot points 34a. The control levers 33 and 34 are connected to the foot frame 32 by hinge brackets 35. On both sides of the side frame panels 28, the hinge brackets 35 are connected to the underside of the foot frame 36 in the region of the rear frame panel 29; the hinge brackets 35 are preferably in the form of angle-irons. The rear control lever 34 is rotatably connected to the hinge bracket 35 in a pivotable pivot point 24, and the front control lever 34 is rotatably connected to the hinge bracket 35 in a pivotable pivot point 25. The pivotable pivot points 24 and 25 are located in the region of the two ends of the hinge bracket 35. The fixed pivot point 33a of the rear control lever 33 is rotatably mounted on the side panels 32 in the region of the rear end panel 41 and above the front fixed pivot point 34a of the front control lever 34. The front fixed pivot points 34a are hingedly connected to the side panels 32 at approximately one third of the total length of the side panels 32 from the front end panel 30a.

A support element 37 is provided at either side on the underside of the foot frame 36 in the region of the front frame panel 27 along the side frame panels 28. The support element 37 is preferably made of squared timber. In the outwardly pivoted position - as shown in Figure 2 - the support elements 37 rest with their lower edges 39 on the upper edge 23 of the front end panel 30a. In order that the foot frame 36 cannot slide forwardly over the end panel 30a beyond the support elements 37, a bracket 38 is mounted on each of the rear edges 40 of the support elements 37. For this purpose, the bracket 38 is secured, by an arm, to the lower edge 39 of the support elements 37, while the other arm is in alignment with the rear edge 40.

The control levers 33 and 34 are arranged in pairs and have different lengths. Consequently, the rear control levers 33 are approximately one tenth to one third shorter than the front control levers 34. In a preferred embodiment, moreover, provision is made for the fixed pivot points 33a and 34a of the control levers 33 and 34 to be interconnected by means of a strut (not shown). The control levers 33 and 34 are made of metal, preferably flat iron - steel, whilst the foot frame 36 is made of wood.

The outwardly pivoting operation is shown in Figures 3 to 6. In Figure 3, the foot frame 36 is in its rest position in the front box member 30. In this case, the control levers 33 and 34 are pivoted backwardly. In Figure 4, the foot frame 36 has been raised in the direction of arrow 43 and the control levers 33 and 34 are thereby beginning to pivot about their fixed pivot points 33a and 34a respectively. In Figure 4, the foot frame 36 has been drawn steeply upwards and can now be extended in the direction of arrow 44. The front control lever 34 has thereby made a pivotal

angle of approximately 45° about its fixed pivot point 34a, whilst the control lever 33 has been pivoted through approximately 90° about its fixed pivot point 33a.

In Figure 6, with the simultaneous target in the direction of the end panel 30a, the foot frame 36 is pivoted with its front end downwardly in the direction of arrow 45 and with its rear end inclined upwardly in the direction of arrow 46; the rear control lever 33 has thereby passed through a pivotal angle of approximately 110° to 120°, whilst the front control lever 34 has passed through a pivotal angle of approximately 80°. The foot frame 36 is drawn forwardly, that is to say in the direction towards the end panel 30a, and is simultaneously pivoted downwardly until it rests, with the support elements 37 (as shown in Figure 2), on the upper edge 23 of the front end panel 30a. This outwardly pivoting movement of the foot frame 36 can extend the total length of the double reclining chair 12 beyond the end panel 30a by approximately the length of the support elements 37. If, as shown in Figure 3, the foot frame 36 is inserted into the front box member 30, it is not disturbed when the front box member 30 moved into the box-type seat 20. After the outwardly pivotal movement, a substantial lengthening of the reclining area of the double reclining chair 12 is achieved by simple means.

In the arrangement illustrated in Figure 7, the upper edge 23 of the front end panel 30a is fitted with a locking plate 47 in the region of the support element 37, or respectively of the bracket 38. The locking plate 47 is secured by securing means 48 to the inside surface of the end panel 30a. The end of the locking plate 47 associated with the upper edge 23 is provided with a coiled portion 49, whereby an inclination 50 is produced which extends towards the front box member 30. When the foot frame 36 is being extended, the free arm of the bracket 38 can slide along this inclination 50 and be secured behind the locking plate 47. The bracket 38 is secured to the underside of the support element 37 by means of round head screws 51, and under load the round head screws 51 are supported on the coiled portion 49 and provide the bracket 38 with such a reliable support.

CLAIMS

1. A doubly extensible bed or reclining chair, including a basic frame, a seat frame capable of being extended from the basic frame with a back member hingedly connected to the seat frame, and a front box member capable of being extended from the seat frame, characterised in that a foot frame is inserted in the front box member and is hingedly connected on either side, to the side panels of the front box member by means of two control levers, and the foot frame is outwardly pivotable from the front box member beyond the end panel of the front box member at the control levers.
2. A bed or chair as claimed in claim 1, in which the foot frame is outwardly pivotable beyond the level of the seat box member.
3. A bed or chair as claimed in claims 1 and 2, in

which a support element is associated with the foot frame and the foot frame is supported in its outwardly pivoted position by the support element on the upper edge of the end panel of the front box

5 member.

4. A bed or chair as claimed in claims 1 to 3, in which the control levers located rearwardly relative to the end panel in the front box member, and the control levers located forwardly relative to the end
10 panel, are hingedly connected to the side panels so as to be each pivotable about a fixed pivot point and the fixed pivot points of the rear control levers are located above the pivot points of the front control levers.

15 5. A bed or chair as claimed in claims 1 to 4, in which the control levers are of different lengths and are hingedly connected to the foot frame by pivotable pivot points, the front control levers being longer than the rear control levers.

20 6. A bed or chair as claimed in claims 1 to 5, in which the end panel is higher than the front box member, and the upper edge of the end panel is located beneath the upper edge of the batten-type frame.

25 7. A bed or chair as claimed in claims 1 to 6, in which a support element is associated with each of the side frame panels of the foot frame in the region of the front frame panel.

8. A bed or chair as claimed in claims 1 to 7, in which a hinge bracket is associated with each of the side frame panels of the foot frame in the region of the rear frame panel, and the pivotable pivot points of the control levers are located in these hinge
30 brackets.

35 9. A bed or chair as claimed in claims 1 to 8, in which the hinge bracket is an angle-iron.

10. A bed or chair as claimed in claims 1 and 7, in which the support elements are made of squared timber.

40 11. A bed or chair as claimed in claims 1 and 10, in which brackets are attached to the lower edges of the support elements, whereby one arm of the bracket is in alignment with the rear edge of the respective support element.

45 12. A bed or chair as claimed in claims 1 to 11, in which the rear control levers are hingedly connected to the hinge brackets in such a manner that they pass through a pivotal angle of approximately 180° when the foot frame is pivoted outwardly, and the front
50 control levers are hingedly connected to the hinge brackets in such a manner that they pass through a pivotal angle of 90° when the foot frame is pivoted outwardly.

13. A doubly extensible bed or chair constructed
55 and arranged to operate substantially as herein described with reference to and as illustrated in the accompanying drawings.

Electronic Acknowledgement Receipt

EFS ID:	5239945
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Paula Fisher
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	29-APR-2009
Filing Date:	24-NOV-2008
Time Stamp:	11:53:06
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138_IDS_Transmittal_A.pdf	392083 fc6ae872128d8780865d1875638a6d04e192d269	yes	4

	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal Letter		1	2	
	Information Disclosure Statement (IDS) Filed (SB/08)		3	4	
Warnings:					
Information:					
2	Foreign Reference	4362-138_For_Ref_GB_2106777A.pdf	369324 dbf9eab6aed76a885e54f6709928722007c70cc5	no	7
Warnings:					
Information:					
3	NPL Documents	4362-138_NPL_LUSCH_Broch_Relaxinf_Chairs.pdf	3982655 8c3a1d28e86ec85c3b791b2888743a9c0cec25632	no	35
Warnings:					
Information:					
4	NPL Documents	4362-138_NPL_Stawett_Brochure.pdf	4923695 a262a43b13572e8c421440a1ecd98385731c95ab	no	91
Warnings:					
Information:					
Total Files Size (in bytes):			9667757		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman et al.

Confirmation No. 4351

Application No.: 12/276,567

Examiner: TBA

Filing Date: November 24, 2008

Group Art Unit: 3636

For: Gliding-Reclining Seating Unit with Power Actuator

Date: April 29, 2009

Mail Stop: Amendment
Commissioner for Patents
Box 1450
Alexandria, VA 22313-1450

INFORMATION DISCLOSURE STATEMENT TRANSMITTAL

Sir:

Attached is an Information Disclosure Statement listing of documents, together with a copy of any listed foreign patent document and/or non-patent literature. A copy of any listed U.S. patent and/or U.S. patent application publication is not provided herewith in accordance with 37 C.F.R. § 1.98(a)(2)(ii).

☒ In accordance with **37 CFR 1.97(b)**, the information disclosure statement is being filed:

- ☐ (1) within three months of the filing date of a national application other than a continued prosecution application under §1.53(d);
- ☐ (2) within three months of the date of entry of the national stage as set forth in §1.491 in an international application;
- ☒ (3) before the mailing of a first Office Action on the merits; or
- ☐ (4) before the mailing of a first Office Action after the filing of a request for continued examination under §1.114.

☐ In accordance with **37 CFR 1.97(c)**, the information disclosure statement is being filed after the period specified in 37 CFR 1.97(b) above, but before the mailing date of any of a final action under §1.113, a notice of allowance under §1.311, or an action that otherwise closes prosecution in the application, and is accompanied by one of the following:

☐ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ Each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement; or

☐ No item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the information disclosure statement; or

☐ (2) The fee set forth in §1.17(p);

☐ In accordance with **37 CFR 1.97(d)**, the information disclosure statement is being filed after the period specified in 37 CFR 1.97(c) above, but on or before payment of the issue fee, and is accompanied by **both** of the following:

☐ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ That each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement; **or**

☐ That no item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the information disclosure statement; **and**

☐ (2) The fee set forth in §1.17(p);

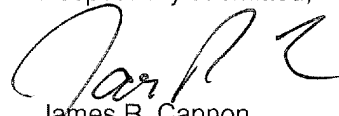
In accordance with **37 CFR 1.97(g)**, the information disclosure statement shall not be construed as a representation that a search has been made.

In accordance with **37 CFR 1.97(h)**, the information disclosure statement shall not be construed to be an admission that the information cited in the statement is, or is considered to be, material to patentability as defined in §1.56(b).

☐ The Director is hereby authorized to charge the fee specified in 37 C.F.R. § 1.17(p), and any fee deficiency or credit any overpayment, to Deposit Account No. 50-0220; **or**

☒ No fee is believed due. However, the Director is hereby authorized to charge any deficiency or credit any overpayment to Deposit Account No. 50-0220.

Respectfully submitted,

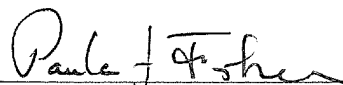

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CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on April 29, 2009.


Name: Paula J. Fisher

Attorney Docket No. 4362-138

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No.: 4351

Application No.: 12/276,567

Group Art Unit: 3636

Filed: November 24, 2008

For: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Date: July 29, 2009

Mail Stop AMENDMENT

Commissioner for Patents

P.O. Box 1450

Alexandria, VA 22313-1450

PRELIMINARY AMENDMENT

Sir:

Please amend the above-identified application as follows:

If any extension of time for the accompanying response or submission is required, Applicant requests that this be considered a petition therefor. The Director is hereby authorized to charge any additional fee, which may be required, or credit any refund, to our Deposit Account No. 50-0220.

Amendments to the Claims are reflected in the **Listing of Claims**, which begins on page 2 of this paper.

Remarks begin on page 10 of this paper.

Listing of Claims

This listing of claims will replace all prior versions and listings of claims in the application.

1. (original) A gliding and reclining seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base;
 - a generally upright backrest positioned above the base and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.
2. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. (original) The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to glide while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

4. (original) The seating unit defined in Claim 1, wherein the power actuating unit includes opposed first and second ends, and wherein the first end of the power actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the power actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

5. (original) The seating unit defined in Claim 4, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the power actuating unit is attached with the upper swing link.

6. (original) The seating unit defined in Claim 4, wherein the power actuating unit includes a motor and an extendable member at the first and second ends.

7. (original) The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

8. (original) The seating unit defined in Claim 1, wherein the base unit further comprises a swivel unit.

9. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the glide mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

10. (original) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force;
and
a linear actuator attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

11. (original) The seating unit defined in Claim 10, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

12. (original) The seating unit defined in Claim 10, further comprising a locking mechanism that allows the seating unit to glide on the gliding mechanism while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

13. (canceled).

14. (canceled).

15. (original) The seating unit defined in Claim 10, wherein the seat rises in moving from the TV position to the fully reclined position.

16. (original) The seating unit defined in Claim 10, further comprising a swivel unit attached to the base.

17. (original) The seating unit defined in Claim 10, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the rocker cams and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat pivotally attached to the backpost.

18. (original) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;

an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force;
and

a linear actuator attached to the reclining mechanism, the actuating unit configured to

move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position; and

wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the gliding mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

19. (original) The seating unit defined in Claim 18, wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

20. (original) The seating unit defined in Claim 19, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

21. (original) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;

a generally upright backrest positioned above the base and substantially rearward of the seat;

an extendable ottoman;

a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a backpost fixed relative to the backrest and a sequencer plate pivotally interconnected with the backrest and with the remainder of the reclining mechanism, and wherein the sequencer plate rotates in a first rotative direction relative to the backrest when the seating unit moves from the upright position to the TV position, and wherein the backrest rotates relative to the sequencer plate in the first rotative direction when the seating unit moves from the TV position to the fully reclined position.

22. (original) The seating unit defined in Claim 21, wherein the backrest includes one of a pin and a slot, and the sequencer plate includes the other of a pin and a slot, the pin being received in the slot.

23. (original) The seating unit defined in Claim 22, wherein the backrest includes the pin, and the sequencer plate includes the slot.

24. (new) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force;
and
a linear power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;
wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

25. (new) The seating unit defined in Claim 24, wherein the reclining mechanism includes a lower swing link pivotally attached with the base and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

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Filed November 24, 2008
Page 9 of 9

REMARKS

Applicant has amended the claims to add Claim 24, which recites the subject matter of original (and now canceled) Claim 13 in independent form, and Claim 25, which recites the subject matter of original Claim 14.

Applicant submits that the present application is in condition for examination. Should the Examiner have any small matters outstanding of resolution, he is encouraged to telephone the undersigned at 919-854-1400 for expeditious handling.

Respectfully submitted,

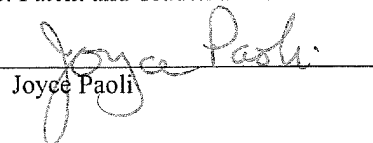

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Attachments

CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on July 10, 2009.

Signature: 
Joyce Paoli

Electronic Acknowledgement Receipt

EFS ID:	5790136
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	29-JUL-2009
Filing Date:	24-NOV-2008
Time Stamp:	13:21:53
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138.pdf	662193 7e3f31c441959b846b4877bf9294c0bc513297c6	yes	9

	Multipart Description/PDF files in .zip description		
	Document Description	Start	End
	Preliminary Amendment	1	1
	Claims	2	8
	Applicant Arguments/Remarks Made in an Amendment	9	9

Warnings:

Information:

Total Files Size (in bytes):	662193
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This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503.

New Applications Under 35 U.S.C. 111

If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371

If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.



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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
12/276,567	11/24/2008	D. Stephen Hoffman	4362-138

CONFIRMATION NO. 4351

PUBLICATION NOTICE



OC000000041826743

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Title: Gliding-Reclining Seating Unit with Power Actuator

Publication No. US-2010-0127555-A1

Publication Date: 05/27/2010

NOTICE OF PUBLICATION OF APPLICATION

The above-identified application will be electronically published as a patent application publication pursuant to 37 CFR 1.211, et seq. The patent application publication number and publication date are set forth above.

The publication may be accessed through the USPTO's publically available Searchable Databases via the Internet at www.uspto.gov. The direct link to access the publication is currently <http://www.uspto.gov/patft/>.

The publication process established by the Office does not provide for mailing a copy of the publication to applicant. A copy of the publication may be obtained from the Office upon payment of the appropriate fee set forth in 37 CFR 1.19(a)(1). Orders for copies of patent application publications are handled by the USPTO's Office of Public Records. The Office of Public Records can be reached by telephone at (703) 308-9726 or (800) 972-6382, by facsimile at (703) 305-8759, by mail addressed to the United States Patent and Trademark Office, Office of Public Records, Alexandria, VA 22313-1450 or via the Internet.

In addition, information on the status of the application, including the mailing date of Office actions and the dates of receipt of correspondence filed in the Office, may also be accessed via the Internet through the Patent Electronic Business Center at www.uspto.gov using the public side of the Patent Application Information and Retrieval (PAIR) system. The direct link to access this status information is currently <http://pair.uspto.gov/>. Prior to publication, such status information is confidential and may only be obtained by applicant using the private side of PAIR.

Further assistance in electronically accessing the publication, or about PAIR, is available by calling the Patent Electronic Business Center at 1-866-217-9197.

Office of Data Management, Application Assistance Unit (571) 272-4000, or (571) 272-4200, or 1-888-786-0101



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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12/276,567

11/24/2008

D. Stephen Hoffman

4362-138

4351

20792 7590 02/15/2011
MYERS BIGEL SIBLEY & SAJOVEC
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RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

02/15/2011

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No. 12/276,567	Applicant(s) HOFFMAN ET AL.	
	Examiner Milton Nelson, Jr.	Art Unit 3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☐ Responsive to communication(s) filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 4) ☒ Claim(s) 1-25 is/are pending in the application.
4a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 5) ☐ Claim(s) ____ is/are allowed.
- 6) ☒ Claim(s) 1-25 is/are rejected.
- 7) ☐ Claim(s) ____ is/are objected to.
- 8) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 9) ☒ The specification is objected to by the Examiner.
- 10) ☒ The drawing(s) filed on 24 November 2008 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 11) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____. |
| 3) ☒ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date <u>4/29/09</u> . | 6) ☐ Other: ____. |

DETAILED ACTION

Information Disclosure Statement

The information referred to in the IDS filed April 29, 2009 has been considered.

Specification

The specification is objected to since the reference character "18" has been inconsistently assigned. Note at least assignment to the arms in paragraph 0022, and the cross-members in paragraph 0024.

Drawings

The drawings filed November 24, 2008 are approved.

Claim Rejections - 35 USC § 112

The following is a quotation of the second paragraph of 35 U.S.C. 112:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-25 are rejected under 35 U.S.C. 112, second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which applicant regards as the invention.

In lines 3 to 4 of claim 1, it is unclear if "the base" is intended to be the same feature as the "base unit", as set forth in lines 2, 7 and 9. Similarly note throughout the claims.

Art Unit: 3636

Proper antecedent basis is lacking for "the chair" in line 14 of claim 1.

The phrase "the ottoman are", as provided in line 15 of claim 1 is grammatically vague.

In claim 9, it is unclear if "the glide mechanism" is intended to be the same feature as the previously recited "gliding mechanism".

In line 13 of claim 10, "the actuating unit" lacks proper antecedent basis.

In line 14 of claim 10, "the chair" lacks proper antecedent basis.

In line 15 of claim 10, the phrase "the ottoman are" is grammatically vague.

In line 3 of claim 17, "the rocker cams" lack proper antecedent basis.

In line 13 of claim 18, "the actuating unit" lacks proper antecedent basis.

In line 14 of claim 18, "the chair" lacks proper antecedent basis.

In line 21 of claim 21, "the remainder" lacks proper antecedent basis.

In line 14 of claim 24, "the chair" lacks proper antecedent basis.

Allowable Subject Matter

Claims 1, 10, 18, 21 and 24 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action.

Claims 2-9, 11-17, 19, 20, 22, 23 and 25 would be allowable if rewritten to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action and to include all of the limitations of the base claim and any intervening claims.

Art Unit: 3636

Conclusion

The prior art made of record and not relied upon is considered pertinent to applicant's disclosure:

Murphy et al (20110018331) shows a recliner with a powered actuator.

May (5704686) shows a gliding/reclining chair.

LaPointe et al (6896323) shows powered drive mechanism for a recliner.

Williams (6843531) shows a powered drive mechanism for a seating assembly.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Milton Nelson, Jr. whose telephone number is (571) 272-6861. The examiner can normally be reached on Mon-Thurs, and alternate Fridays, 5:30-3:00 EST.

The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Art Unit: 3636

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

mn
February 12, 2011

Notice of References Cited	Application/Control No. 12/276,567	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.	
	Examiner Milton Nelson, Jr.	Art Unit 3636	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
*	A	US-2011/0018331	01-2011	Murphy et al.	297/85.R
*	B	US-5,704,686	01-1998	May, Teddy J.	297/281
*	C	US-6,896,323	05-2005	LaPointe et al.	297/85M
*	D	US-6,843,531	01-2005	Williams, James A.	297/337
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	
	V	
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Index of Claims



Application/Control No.

12/276,567

Examiner

Milton Nelson, Jr.

Applicant(s)/Patent under Reexamination

HOFFMAN ET AL.

Art Unit

3636

✓	Rejected
=	Allowed

—	(Through numeral) Cancelled
÷	Restricted

N	Non-Elected
I	Interference

A	Appeal
O	Objected

Claim		Date									
Final	Original	2/12/11									
	1	✓									
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Search Notes

Application/Control No.

12/276,567

Examiner

Milton Nelson, Jr.

Applicant(s)/Patent under
Reexamination

HOFFMAN ET AL.

Art Unit

3636

SEARCHED

Class	Subclass	Date	Examiner
297	85M	2/11/2011	MN
	68		
	342		
	330		

INTERFERENCE SEARCHED

Class	Subclass	Date	Examiner

**SEARCH NOTES
(INCLUDING SEARCH STRATEGY)**

	DATE	EXMR
Inventor search	2/11/2011	MN
EAST, text, fwd/bwd	2/11/2011	MN
checked 12/508,901	2/11/2011	mn



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BIB DATA SHEET

CONFIRMATION NO. 4351

SERIAL NUMBER 12/276,567	FILING or 371(c) DATE 11/24/2008 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. 4362-138	
APPLICANTS D. Stephen Hoffman, High Point, NC; Marcus L. Murphy, Lexington, NC; ** CONTINUING DATA ***** ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** ** SMALL ENTITY ** 12/04/2008					
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and /MILTON NELSON JR/ Acknowledged Examiner's Signature	☐ Met after Allowance Initials	STATE OR COUNTRY NC	SHEETS DRAWINGS 5	TOTAL CLAIMS 23	INDEPENDENT CLAIMS 4
ADDRESS MYERS BIGEL SIBLEY & SAJOVEC PO BOX 37428 RALEIGH, NC 27627 UNITED STATES					
TITLE Gliding-Reclining Seating Unit with Power Actuator					
FILING FEE RECEIVED 715	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees ☐ 1.16 Fees (Filing) ☐ 1.17 Fees (Processing Ext. of time) ☐ 1.18 Fees (Issue) ☐ Other _____ ☐ Credit		

EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
S1	30	("2526623" "2714922" "20060082195" "3147038" "3383135" "3622202" "3863980" "4307912" "4386803" "4674794" "4681365" "4682815" "4691964" "4696512" "4722566" "4813743" "4915444" "5007679" "5086769" "5884970" "5931535" "0507270" "6491342" "6540291" "6612650" "6948777" "7083235" "7188904" "7293834" "7311359").PN.	US-PGPUB; USPAT	OR	OFF	2011/02/11 10:15
S2	150	reclining and gliding	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 10:16
S3	15	S2 and ottoman	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 10:17

S4	54	S2 and power	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 10:22
S5	14	("20030024338" "4365836" "5368366" "5388886" "5435621" "5570930" "5595420" "5704686" "5806921" "5992931" "6059367" "6135559").PN. OR ("6893085").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/02/11 10:29
S6	12	(US-20110018331-\$ or US-20100127556-\$ or US-20100127555-\$ or US-20040256902-\$). did. or (US-5890765-\$ or US-5704686-\$ or US-6896323-\$ or US- 6893085-\$ or US- 6843531-\$ or US- 5992931-\$ or US- 5806921-\$).did. or (WO-0008977-\$).did.	US-PGPUB; USPAT; DERWENT	OR	OFF	2011/02/11 10:54
S7	6	S6 and glide	US-PGPUB; USPAT; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 10:55
S8	43	(297/85M).CCLS.	US-PGPUB; USPAT; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 11:40
S9	350	(297/68).CCLS.	US-PGPUB; USPAT; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 11:54
S10	0	(12/276559).APP.	USPAT; USOCR	OR	OFF	2011/02/11 11:57
S11	13	"6659556"	US-PGPUB; USPAT	OR	OFF	2011/02/11 11:59

S12	3	"7575279"	US-PGPUB; USPAT	OR	OFF	2011/02/11 12:02
S13	254	(297/342).CCLS.	US-PGPUB; USPAT; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 12:27
S14	822	(297/330).CCLS.	US-PGPUB; USPAT; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/02/11 12:50

2/ 12/ 11 12:07:18 PM

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known		
				Application Number		12/276,567
				Filing Date		November 24, 2008
				First Named Inventor		D. Stephen Hoffman et al.
				Art Unit		3636
				Examiner Name		TBA
Sheet	A1	of	A2	Attorney Docket Number		4362-138

U.S. PATENT DOCUMENTS AND APPLICATIONS						
Examiner Initials*	Cite No.	Document Number		Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)				
	1.	US-	7,311,359 B2	12-25-2007	Smith	
	2.	US-	7,293,834 B2	11-13-2007	Riach et al.	
	3.	US-	7,188,904 B2	03-13-2007	Bruck et al.	
	4.	US-	7,083,235 B2	08-01-2006	Grimm et al.	
	5.	US-	6,948,777 B2	09-27-2005	Marshall et al.	
	6.	US-	6,612,650 B1	09-02-2003	Ambrosio et al.	
	7.	US-	6,540,291	04-01-2003	Hoffman et al.	
	8.	US-	6,491,342 B1	12-10-2002	Smith	
	9.	US-	5,931,535 A	08-03-1999	Sweet	
	10.	US-	5,884,970 A	03-23-1999	Howard	
	11.	US-	5,086,769	02-11-1992	Vianello et al.	
	12.	US-	5,007,679	04-16-1991	Mizelle	
	13.	US-	4,915,444	04-10-1990	Rogers Jr.	
	14.	US-	4,813,743	03-21-1989	Mizelle	
	15.	US-	4,722,566	02-02-1988	Castellini	
	16.	US-	4,696,512	09-29-1987	Burnett et al.	
	17.	US-	4,691,964	09-08-1987	Morgan	
	18.	US-	4,682,815 A	07-28-1987	Steifensand	
	19.	US-	4,681,365	07-21-1987	Pine	
	20.	US-	4,674,794	06-23-1987	Pine	
	21.	US-	4,386,803	06-07-1983	Gilderbloom	
	22.	US-	4,307,912	12-29-1981	Watt et al.	
	23.	US-	3,863,980	02-04-1975	Ciner	
	24.	US-	3,622,202	11-23-1971	Brown	
	25.	US-	3,383,135	05-14-1968	Posh	
	26.	US-	3,147,038	09-01-1964	Barabas	
	27.	US-	2,714,922	08-09-1955	McKibban et al.	
	28.	US-	2,526,623 A	10-24-1950	Maurer	
	29.	US-	0,507,270 A	10-24-1893	Name Not Available	
	30.	US-	2006/0082195 A1	04-20-2006	Jiang	

FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No.	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
		Country Code, Number, Kind Code (if known)				
	31.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstract

Examiner Signature	/Milton Nelson, Jr/	Date Considered	02/12/2011
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /MN/

INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known	
				Application Number	12/276,567
				Filing Date	November 24, 2008
				First Named Inventor	D. Stephen Hoffman et al.
				Art Unit	3636
				Examiner Name	TBA
Sheet	A2	of	A2	Attorney Docket Number	4362-138

NON PATENT LITERATURE DOCUMENTS			
Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T
	32.	Lusch Brochure: "Functional Fitting and Tubular steel frames for Relaxing Chairs (11 pages), Functional Fittings for Sofabeds and Beds (10 pages), Bed Fitting (5 pages) and Upholstery joints and accessories for furniture (9 pages)", (available before April 7, 2006).	Yes
	33.	"Stawett Functional Bed Mechanisms Brochure", pp. 3-93 (2001).	Yes

iDoc# 775337

Examiner Signature	/Milton Nelson, Jr/	Date Considered	02/12/2011
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /MN/

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No.: 4351

Application No.: 12/276,567

Group Art Unit: 3636

Filed: November 24, 2008

For: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Date: March 7, 2011

Mail Stop AMENDMENT

Commissioner for Patents

P.O. Box 1450

Alexandria, VA 22313-1450

**AMENDMENT AND RESPONSE TO OFFICE ACTION
DATED FEBRUARY 15, 2011**

Sir:

This Amendment is responsive to the Official Action of February 15, 2011 (the Action). Please amend the above-identified application as follows.

If any extension of time for the accompanying response or submission is required, Applicants request that this be considered a petition therefor. The Commissioner is hereby authorized to charge any additional fee, which may be required, or credit any refund, to Deposit Account No. 50-0220.

Amendments to the Claims are reflected in the Listing of Claims, which begins on page 2 of this paper.

Remarks/Arguments begin on page 9 of this paper.

Listing of Claims:

This listing of claims will replace all prior versions, and listings, of claims in the application.

1. (currently amended) A gliding and reclining seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base unit;
 - a generally upright backrest positioned above the base unit and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the ~~chair~~ seating unit between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman ~~are~~ is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.
2. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. (original) The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to glide while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

4. (original) The seating unit defined in Claim 1, wherein the power actuating unit includes opposed first and second ends, and wherein the first end of the power actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the power actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

5. (currently amended) The seating unit defined in Claim 4, wherein the reclining mechanism includes a lower swing link pivotally attached with the base unit and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the power actuating unit is attached with the upper swing link.

6. (original) The seating unit defined in Claim 4, wherein the power actuating unit includes a motor and an extendable member at the first and second ends.

7. (original) The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

8. (original) The seating unit defined in Claim 1, wherein the base unit further comprises a swivel unit.

9. (currently amended) The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the ~~glide~~ gliding mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

10. (currently amended) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base unit;
a generally upright backrest positioned above the base unit and substantially rearward of the seat;

an extendable ottoman;

a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a linear actuator attached to the reclining mechanism, the ~~actuating unit~~ linear actuator configured to move the ~~chair~~ seating unit between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman ~~are~~ is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases.

11. (original) The seating unit defined in Claim 10, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

12. (original) The seating unit defined in Claim 10, further comprising a locking mechanism that allows the seating unit to glide on the gliding mechanism while in the upright position but prevents gliding of the seating unit while in the TV and fully reclined positions.

13. (canceled).

14. (canceled).

15. (original) The seating unit defined in Claim 10, wherein the seat rises in moving from the TV position to the fully reclined position.

16. (currently amended) The seating unit defined in Claim 10, further comprising a swivel unit attached to the base unit.

17. (currently amended) The seating unit defined in Claim 10, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the ~~rocker-cams~~ gliding mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat pivotally attached to the backpost.

18. (currently amended) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base unit;
a generally upright backrest positioned above the base unit and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force;
and
a linear actuator attached to the reclining mechanism, the ~~actuating unit~~ linear actuator configured to move the ~~chair~~ seating unit between (a) an upright position, in which the seat is

generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position; and

wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the gliding mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

19. (original) The seating unit defined in Claim 18, wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

20. (currently amended) The seating unit defined in Claim 19, wherein the reclining mechanism includes a lower swing link pivotally attached with the base unit and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

21. (currently amended) A gliding and reclining seating unit, comprising:
a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base unit;
a generally upright backrest positioned above the base unit and substantially rearward of the seat;
an extendable ottoman;

a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes a backpost fixed relative to the backrest and a sequencer plate pivotally interconnected with the backrest and with ~~the remainder~~ others of the plurality of pivotally interconnected links of the reclining mechanism, and wherein the sequencer plate rotates in a first rotative direction relative to the backrest when the seating unit moves from the upright position to the TV position, and wherein the backrest rotates relative to the sequencer plate in the first rotative direction when the seating unit moves from the TV position to the fully reclined position.

22. (original) The seating unit defined in Claim 21, wherein the backrest includes one of a pin and a slot, and the sequencer plate includes the other of a pin and a slot, the pin being received in the slot.

23. (original) The seating unit defined in Claim 22, wherein the backrest includes the pin, and the sequencer plate includes the slot.

24. (currently amended) A gliding and reclining seating unit, comprising:

a base unit with a first bearing surface;
a generally horizontally-disposed seat positioned above the base unit;
a generally upright backrest positioned above the base unit and substantially rearward of the seat;

an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;

a gliding mechanism attached to the base unit and the reclining mechanism, the gliding mechanism being configured to enable the seat, backrest and reclining mechanism to glide relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and

a linear power actuating unit attached to the reclining mechanism, the actuating unit configured to move the ~~chair~~ seating unit between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the linear actuator includes opposed first and second ends, and wherein the first end of the linear actuator moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuator moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

25. (currently amended) The seating unit defined in Claim 24, wherein the reclining mechanism includes a lower swing link pivotally attached with the base unit and an upper swing link pivotally attached with the lower swing link and with the backrest, and wherein the second end of the linear actuator is attached with the upper swing link.

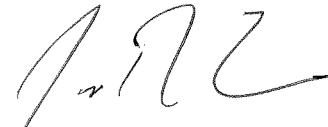
REMARKS

Claims 1-25 are pending. All pending claims stand rejected under Section 112, second paragraph. All pending claims are also deemed to be allowable over the prior art of record assuming that the Section 112 issues are addressed.

Above, Applicant has amended the claims cited in the Action for Section 112 non-compliance. As such, Applicant submits that these rejections have been obviated and requests that they be withdrawn.

Accordingly, Applicant submits that the present application is in condition for allowance and the same is earnestly solicited. The Examiner is encouraged to telephone the undersigned at 919-854-1400 for resolution of any outstanding issues.

Respectfully submitted,



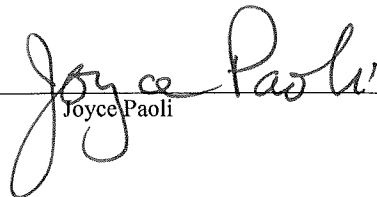
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CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with 37 CFR § 1.6(a)(4) to the U.S. Patent and Trademark Office on March 7, 2011.

Signature: _____


Joyce Paoli

Electronic Acknowledgement Receipt

EFS ID:	9597686
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	Gliding-Reclining Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	07-MAR-2011
Filing Date:	24-NOV-2008
Time Stamp:	13:27:14
Application Type:	Utility under 35 USC 111(a)

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Submitted with Payment	no
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Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138.pdf	823008 3894fb0b871731e6c226a081d9490e23fa8391bf	yes	9

Multipart Description/PDF files in .zip description			
Document Description	Start	End	
Amendment/Req. Reconsideration-After Non-Final Reject	1	1	
Claims	2	8	
Applicant Arguments/Remarks Made in an Amendment	9	9	

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New Applications Under 35 U.S.C. 111
If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371
If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office
If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875					Application or Docket Number 12/276,567		Filing Date 11/24/2008		☐ To be Mailed	
APPLICATION AS FILED – PART I										
(Column 1)			(Column 2)			SMALL ENTITY ☒ OR		OTHER THAN SMALL ENTITY		
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)	OR	RATE (\$)	FEE (\$)			
☐ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A			N/A				
☐ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A			N/A				
☐ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A			N/A				
TOTAL CLAIMS (37 CFR 1.16(j))	minus 20 =	*	X \$	=		X \$	=			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	minus 3 =	*	X \$	=		X \$	=			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).									
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))										
			TOTAL			TOTAL				
* If the difference in column 1 is less than zero, enter "0" in column 2.										
APPLICATION AS AMENDED – PART II										
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT	03/07/2011	CLAIMS REMAINING AFTER AMENDMENT	MINUS	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	* 23	Minus	** 23	= 0	X \$26 =	0		X \$	=
	Independent (37 CFR 1.16(h))	* 5	Minus	***5	= 0	X \$110 =	0		X \$	=
☐ Application Size Fee (37 CFR 1.16(s))										
☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))								OR		
						TOTAL ADD'L FEE	0	OR	TOTAL ADD'L FEE	
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT		CLAIMS REMAINING AFTER AMENDMENT	MINUS	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$	=		X \$	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$	=		X \$	=
☐ Application Size Fee (37 CFR 1.16(s))										
☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))								OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.										

Legal Instrument Examiner:
/SANDRA L. TUCKER SMITH/

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

NOTICE OF ALLOWANCE AND FEE(S) DUE

20792 7590 03/16/2011
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

DATE MAILED: 03/16/2011

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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12/276,567

11/24/2008

D. Stephen Hoffman

4362-138

4351

TITLE OF INVENTION: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	YES	\$755	\$300	\$0	\$1055	06/16/2011

THE APPLICATION IDENTIFIED ABOVE HAS BEEN EXAMINED AND IS ALLOWED FOR ISSUANCE AS A PATENT. PROSECUTION ON THE MERITS IS CLOSED. THIS NOTICE OF ALLOWANCE IS NOT A GRANT OF PATENT RIGHTS. THIS APPLICATION IS SUBJECT TO WITHDRAWAL FROM ISSUE AT THE INITIATIVE OF THE OFFICE OR UPON PETITION BY THE APPLICANT. SEE 37 CFR 1.313 AND MPEP 1308.

THE ISSUE FEE AND PUBLICATION FEE (IF REQUIRED) MUST BE PAID WITHIN THREE MONTHS FROM THE MAILING DATE OF THIS NOTICE OR THIS APPLICATION SHALL BE REGARDED AS ABANDONED. THIS STATUTORY PERIOD CANNOT BE EXTENDED. SEE 35 U.S.C. 151. THE ISSUE FEE DUE INDICATED ABOVE DOES NOT REFLECT A CREDIT FOR ANY PREVIOUSLY PAID ISSUE FEE IN THIS APPLICATION. IF AN ISSUE FEE HAS PREVIOUSLY BEEN PAID IN THIS APPLICATION (AS SHOWN ABOVE), THE RETURN OF PART B OF THIS FORM WILL BE CONSIDERED A REQUEST TO REAPPLY THE PREVIOUSLY PAID ISSUE FEE TOWARD THE ISSUE FEE NOW DUE.

HOW TO REPLY TO THIS NOTICE:

I. Review the SMALL ENTITY status shown above.

If the SMALL ENTITY is shown as YES, verify your current SMALL ENTITY status:

A. If the status is the same, pay the TOTAL FEE(S) DUE shown above.

B. If the status above is to be removed, check box 5b on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and twice the amount of the ISSUE FEE shown above, or

If the SMALL ENTITY is shown as NO:

A. Pay TOTAL FEE(S) DUE shown above, or

B. If applicant claimed SMALL ENTITY status before, or is now claiming SMALL ENTITY status, check box 5a on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and 1/2 the ISSUE FEE shown above.

II. PART B - FEE(S) TRANSMITTAL, or its equivalent, must be completed and returned to the United States Patent and Trademark Office (USPTO) with your ISSUE FEE and PUBLICATION FEE (if required). If you are charging the fee(s) to your deposit account, section "4b" of Part B - Fee(s) Transmittal should be completed and an extra copy of the form should be submitted. If an equivalent of Part B is filed, a request to reapply a previously paid issue fee must be clearly made, and delays in processing may occur due to the difficulty in recognizing the paper as an equivalent of Part B.

III. All communications regarding this application must give the application number. Please direct all communications prior to issuance to Mail Stop ISSUE FEE unless advised to the contrary.

IMPORTANT REMINDER: Utility patents issuing on applications filed on or after Dec. 12, 1980 may require payment of maintenance fees. It is patentee's responsibility to ensure timely payment of maintenance fees when due.

PART B - FEE(S) TRANSMITTAL

**Complete and send this form, together with applicable fee(s), to: Mail Mail Stop ISSUE FEE
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax (571)-273-2885**

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

20792 7590 03/16/2011
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

(Depositor's name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

12/276,567	11/24/2008	D. Stephen Hoffman	4362-138	4351
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TITLE OF INVENTION: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
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nonprovisional	YES	\$755	\$300	\$0	\$1055	06/16/2011
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EXAMINER	ART UNIT	CLASS-SUBCLASS
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NELSON JR, MILTON	3636	297-08500M
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1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

- ☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached.
- ☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list

- (1) the names of up to 3 registered patent attorneys or agents OR, alternatively, 1 _____
- (2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed. 2 _____
- 3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE (B) RESIDENCE: (CITY and STATE OR COUNTRY)

Please check the appropriate assignee category or categories (will not be printed on the patent) : ☐ Individual ☐ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

- ☐ Issue Fee
- ☐ Publication Fee (No small entity discount permitted)
- ☐ Advance Order - # of Copies _____

4b. Payment of Fee(s); (Please first reapply any previously paid issue fee shown above)

- ☐ A check is enclosed.
- ☐ Payment by credit card. Form PTO-2038 is attached.
- ☐ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number _____ (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

- ☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27. ☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature _____ Date _____

Typed or printed name _____ Registration No. _____

This collection of information is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/276,567	11/24/2008	D. Stephen Hoffman	4362-138	4351

20792	7590	03/16/2011
MYERS BIGEL SIBLEY & SAJOVEC		
PO BOX 37428		
RALEIGH, NC 27627		

EXAMINER	
NELSON JR, MILTON	

ART UNIT	PAPER NUMBER
3636	

DATE MAILED: 03/16/2011

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment to date is 387 day(s). If the issue fee is paid on the date that is three months after the mailing date of this notice and the patent issues on the Tuesday before the date that is 28 weeks (six and a half months) after the mailing date of this notice, the Patent Term Adjustment will be 387 day(s).

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Customer Service Center of the Office of Patent Publication at 1-(888)-786-0101 or (571)-272-4200.

Privacy Act Statement

The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether disclosure of these records is required by the Freedom of Information Act.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
4. A record in this system of records may be disclosed, as a routine use, to a contractor of the Agency having need for the information in order to perform a contract. Recipients of information shall be required to comply with the requirements of the Privacy Act of 1974, as amended, pursuant to 5 U.S.C. 552a(m).
5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspection or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

Notice of Allowability

Application No.

12/276,567

Examiner

Milton Nelson, Jr.

Applicant(s)

HOFFMAN ET AL.

Art Unit

3636

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address--

All claims being allowable, PROSECUTION ON THE MERITS IS (OR REMAINS) CLOSED in this application. If not included herewith (or previously mailed), a Notice of Allowance (PTOL-85) or other appropriate communication will be mailed in due course. **THIS NOTICE OF ALLOWABILITY IS NOT A GRANT OF PATENT RIGHTS.** This application is subject to withdrawal from issue at the initiative of the Office or upon petition by the applicant. See 37 CFR 1.313 and MPEP 1308.

1. ☒ This communication is responsive to Applicant's amendment of 3/7/11.
2. ☒ The allowed claim(s) is/are 1-12 and 15-25.
3. ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some* c) ☐ None of the:
- ☐ Certified copies of the priority documents have been received.
 - ☐ Certified copies of the priority documents have been received in Application No. _____.
 - ☐ Copies of the certified copies of the priority documents have been received in this national stage application from the International Bureau (PCT Rule 17.2(a)).

* Certified copies not received: _____.

Applicant has THREE MONTHS FROM THE "MAILING DATE" of this communication to file a reply complying with the requirements noted below. Failure to timely comply will result in ABANDONMENT of this application.

THIS THREE-MONTH PERIOD IS NOT EXTENDABLE.

4. ☐ A SUBSTITUTE OATH OR DECLARATION must be submitted. Note the attached EXAMINER'S AMENDMENT or NOTICE OF INFORMAL PATENT APPLICATION (PTO-152) which gives reason(s) why the oath or declaration is deficient.
5. ☐ CORRECTED DRAWINGS (as "replacement sheets") must be submitted.
- (a) ☐ including changes required by the Notice of Draftsperson's Patent Drawing Review (PTO-948) attached
- 1) ☐ hereto or 2) ☐ to Paper No./Mail Date _____.
- (b) ☐ including changes required by the attached Examiner's Amendment / Comment or in the Office action of Paper No./Mail Date _____.
- Identifying indicia such as the application number (see 37 CFR 1.84(c)) should be written on the drawings in the front (not the back) of each sheet. Replacement sheet(s) should be labeled as such in the header according to 37 CFR 1.121(d).**
6. ☐ DEPOSIT OF and/or INFORMATION about the deposit of BIOLOGICAL MATERIAL must be submitted. Note the attached Examiner's comment regarding REQUIREMENT FOR THE DEPOSIT OF BIOLOGICAL MATERIAL.

Attachment(s)

- | | |
|--|--|
| 1. ☐ Notice of References Cited (PTO-892) | 5. ☐ Notice of Informal Patent Application |
| 2. ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | 6. ☐ Interview Summary (PTO-413),
Paper No./Mail Date _____. |
| 3. ☐ Information Disclosure Statements (PTO/SB/08),
Paper No./Mail Date _____ | 7. ☒ Examiner's Amendment/Comment |
| 4. ☐ Examiner's Comment Regarding Requirement for Deposit
of Biological Material | 8. ☐ Examiner's Statement of Reasons for Allowance |
| | 9. ☐ Other _____. |

EXAMINER'S AMENDMENT

An examiner's amendment to correct obvious errors appears below. Should the changes and/or additions be unacceptable to applicant, an amendment may be filed as provided by 37 CFR 1.312. To ensure consideration of such an amendment, it MUST be submitted no later than the payment of the issue fee.

The application has been amended as follows:

1. In line 15 of claim 18, "are" has been changed to - - is - - .
2. In line 15 of claim 21, "are" has been changed to - - is - - .

Claims 1-12 and 15-25 are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Milton Nelson, Jr. whose telephone number is (571) 272-6861. The examiner can normally be reached on Mon-Thurs, and alternate Fridays, 5:30-3:00 EST.

The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Art Unit: 3636

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

mn
March 10, 2011

file:///C:/Documents%20and%20Settings/mnelson/My%20Doc...76567/EASTSearchHistory.12276567_AccessibleVersion.htm (1 of 3)3/10/11 1:28:41 PM

L9	24	("20030033675" "3093410" "3159423" "3254916" "3964786" "4168099" "4183578" "4330151" "4392685" "5390384" "5401078" "5645313" "5943965" "6192809" "6565112" "D265242" "D301612" "D334982" "D409751" "D511834").PN. OR ("7293834").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:16
L10	18	("2906318" "3537747" "3603641" "3815954" "4477118" "4536029" "4915444" "5087094" "5110179" "5120107" "5857739").PN. OR ("6540291").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:17
L11	32	("0426601" "1837911" "2299538" "2798534" "2927630" "3033612" "3039816" "3103381" "3363942" "4383714" "4519647" "4919478" "4957302" "5244252" "5348367" "5564781" "5857739").PN. OR ("6491342").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:19
L13	0	("2011/0018331").URPN.	USPAT	OR	OFF	2011/03/10 13:21
L14	0	(12/508927).APP.	USPAT; USOCR	OR	OFF	2011/03/10 13:21
L16	0	("2010/0127556").URPN.	USPAT	OR	OFF	2011/03/10 13:22
L17	0	(12/508901).APP.	USPAT; USOCR	OR	OFF	2011/03/10 13:22
L18	0	("2010/0127555").URPN.	USPAT	OR	OFF	2011/03/10 13:22
L19	22	("3226155" "4544201" "4591205" "5186518" "5427433").PN. OR ("5704686").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:22
L20	12	("20030024338" "4365836" "5368366" "5388886" "5435621" "5570930" "5595420" "5704686" "5806921" "5992931" "6059367" "6135559").PN. OR ("6896323").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:23

L21	54	("0711412" "0871022" "1414637" "2025436" "2240748" "2351222" "2497395" "2591426" "2642584" "2860691" "3005997" "3235308" "3299446" "3331408" "3458877" "3567280" "3816860" "3913152" "4001901" "4037872" "4166299" "4452486" "4481684" "4563784" "4586206" "4733845" "4756034" "4844541" "5098158" "5129706" "5292178" "5575449" "5575535" "5607204" "5735573" "5988749"). PN. OR ("6843531"). URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2011/03/10 13:24
L22	15	gliding and reclining and seat and ottoman	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2011/03/10 13:27

3/ 10/ 11 1:28:38 PM

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Search Notes

Application/Control No.

12/276,567

Examiner

Milton Nelson, Jr.

Applicant(s)/Patent under
Reexamination

HOFFMAN ET AL.

Art Unit

3636

SEARCHED

Class	Subclass	Date	Examiner
297	85M	2/11/2011	MN
	68		
	342		
	330		
updated		3/10/2011	MN
297	344.21	3/10/2011	MN
	344.24		
	344.26		

INTERFERENCE SEARCHED

Class	Subclass	Date	Examiner
Classification, text		3/10/2011	MN

**SEARCH NOTES
(INCLUDING SEARCH STRATEGY)**

	DATE	EXMR
Inventor search	2/11/2011	MN
EAST, text, fwd/bwd	2/11/2011	MN
checked 12/508,901	2/11/2011	mn
EAST, text, fwd/bwd	3/10/2011	MN



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
 United States Patent and Trademark Office
 Address: COMMISSIONER FOR PATENTS
 P.O. Box 1450
 Alexandria, Virginia 22313-1450
 www.uspto.gov

BIB DATA SHEET

CONFIRMATION NO. 4351

SERIAL NUMBER 12/276,567	FILING or 371(c) DATE 11/24/2008 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. 4362-138	
APPLICANTS D. Stephen Hoffman, High Point, NC; Marcus L. Murphy, Lexington, NC; ** CONTINUING DATA ***** ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** ** SMALL ENTITY ** 12/04/2008					
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and /MILTON NELSON JR/ Acknowledged Examiner's Signature	☐ Met after Allowance Initials	STATE OR COUNTRY NC	SHEETS DRAWINGS 5	TOTAL CLAIMS 23	INDEPENDENT CLAIMS 4
ADDRESS MYERS BIGEL SIBLEY & SAJOVEC PO BOX 37428 RALEIGH, NC 27627 UNITED STATES					
TITLE Gliding-Reclining Seating Unit with Power Actuator					
FILING FEE RECEIVED 715	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees ☐ 1.16 Fees (Filing) ☐ 1.17 Fees (Processing Ext. of time) ☐ 1.18 Fees (Issue) ☐ Other _____ ☐ Credit		

Issue Classification 	Application No. 12/276,567	Applicant(s) HOFFMAN ET AL.	
	Examiner Milton Nelson, Jr.	Art Unit 3636	

ISSUE CLASSIFICATION												
ORIGINAL					CROSS REFERENCE(S)							
CLASS		SUBCLASS			CLASS	SUBCLASS (ONE SUBCLASS PER BLOCK)						
297		85M			297	344.21						
INTERNATIONAL CLASSIFICATION												
A	4	7	C	1/031								
A	4	7	C	1/00								
				/								
				/								
				/								
---- (Assistant Examiner) (Date)					/Milton Nelson, Jr./ 3/10/11 (Primary Examiner) (Date)					Total Claims Allowed: 23		
(Legal Instruments Examiner) (Date)										O.G. Print Claim(s) 21	O.G. Print Fig. 4	

☐ Claims renumbered in the same order as presented by applicant		☐ CPA		☐ T.D.		☐ R.1.47	
Final	Original	Final	Original	Final	Original	Final	Original
1	1		31		61		121
2	2		32		62		122
3	3		33		63		123
4	4		34		64		124
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Index of Claims



Application/Control No.

12/276,567

Examiner

Milton Nelson, Jr.

Applicant(s)/Patent under Reexamination

HOFFMAN ET AL.

Art Unit

3636

✓	Rejected
=	Allowed

—	(Through numeral) Cancelled
÷	Restricted

N	Non-Elected
I	Interference

A	Appeal
O	Objected

Claim		Date									
Final	Original	2/12/11	3/10/11								
1	1	✓	=								
2	2	✓	=								
3	3	✓	=								
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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Complete if Known			
		Application Number	12/276,567		
		Filing Date	November 24, 2008		
		First Named Inventor	D. Stephen Hoffman et al.		
		Art Unit	3636		
		Examiner Name	TBA		
Sheet	A1	of	A2	Attorney Docket Number	4362-138

U.S. PATENT DOCUMENTS AND APPLICATIONS						
Examiner Initials*	Cite No.	Document Number		Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)				
	1.	US-	7,311,359 B2	12-25-2007	Smith	
	2.	US-	7,293,834 B2	11-13-2007	Riach et al.	
	3.	US-	7,188,904 B2	03-13-2007	Bruck et al.	
	4.	US-	7,083,235 B2	08-01-2006	Grimm et al.	
	5.	US-	6,948,777 B2	09-27-2005	Marshall et al.	
	6.	US-	6,612,650 B1	09-02-2003	Ambrosio et al.	
	7.	US-	6,540,291	04-01-2003	Hoffman et al.	
	8.	US-	6,491,342 B1	12-10-2002	Smith	
	9.	US-	5,931,535 A	08-03-1999	Sweet	
	10.	US-	5,884,970 A	03-23-1999	Howard	
	11.	US-	5,086,769	02-11-1992	Vianello et al.	
	12.	US-	5,007,679	04-16-1991	Mizelle	
	13.	US-	4,915,444	04-10-1990	Rogers Jr.	
	14.	US-	4,813,743	03-21-1989	Mizelle	
	15.	US-	4,722,566	02-02-1988	Castellini	
	16.	US-	4,696,512	09-29-1987	Burnett et al.	
	17.	US-	4,691,964	09-08-1987	Morgan	
	18.	US-	4,682,815 A	07-28-1987	Steifensand	
	19.	US-	4,681,365	07-21-1987	Pine	
	20.	US-	4,674,794	06-23-1987	Pine	
	21.	US-	4,386,803	06-07-1983	Gilderbloom	
	22.	US-	4,307,912	12-29-1981	Watt et al.	
	23.	US-	3,863,980	02-04-1975	Ciner	
	24.	US-	3,622,202	11-23-1971	Brown	
	25.	US-	3,383,135	05-14-1968	Posh	
	26.	US-	3,147,038	09-01-1964	Barabas	
	27.	US-	2,714,922	08-09-1955	McKibban et al.	
	28.	US-	2,526,623 A	10-24-1950	Maurer	
	29.	US-	2,507,270 A	10-24-1893	Name Not Available	Hirschfeld
e(s) applied	30.	US-	2006/0082195 A1	04-20-2006	Jiang	

Change(s) applied
to document,

FOREIGN PATENT DOCUMENTS

FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No.	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
		Country Code, Number, Kind Code (if known)				
	31.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstract

Examiner Signature	/Milton Nelson, Jr./	Date Considered	02/12/2011
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /MN/

INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known	
				Application Number	12/276,567
				Filing Date	November 24, 2008
				First Named Inventor	D. Stephen Hoffman
				Art Unit	3636
				Examiner Name	Milton Nelson, Jr.
Sheet	1	of	1	Attorney Docket Number	4362-138

U.S. PATENT DOCUMENTS					
Examiner Initials*	Cite No.	Document Number	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)			
	1.	US- 3,016,264	01/09/1962	A.L. Hughes	
	2.	US- 6,840,575 B2	01/11/2005	Hesse	
	3.	US- 6,893,085 B2	05/17/2005	LaPointe et al.	
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FOREIGN PATENT DOCUMENTS					
Examiner Initials*	Cite No.	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Country Code, Number, Kind Code (if known)			T

NON PATENT LITERATURE DOCUMENTS			
Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T

Examiner Signature		Date Considered	
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

Electronic Patent Application Fee Transmittal

Application Number:	12276567			
Filing Date:	24-Nov-2008			
Title of Invention:	GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Joyce Paoli			
Attorney Docket Number:	4362-138			
Filed as Large Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Miscellaneous:				
Submission- Information Disclosure Stmt	1806	1	180	180
Total in USD (\$)				180

Electronic Acknowledgement Receipt

EFS ID:	9967469
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	27-APR-2011
Filing Date:	24-NOV-2008
Time Stamp:	14:50:17
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$ 180
RAM confirmation Number	1087
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:

Charge any Additional Fees required under 37 C.F.R. Section 1.21 (Miscellaneous fees and charges)

File Listing:					
Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138-IDS.pdf	319309 463d4c3baa0fe456534a84741dC2d7841e7dffb88	yes	3
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal Letter		1	2	
	Information Disclosure Statement (IDS) Filed (SB/08)		3	3	
Warnings:					
Information:					
2	Fee Worksheet (PTO-875)	fee-info.pdf	30351 e4c5e0f4752858a4d215c12496dcfee721f1c878	no	2
Warnings:					
Information:					
Total Files Size (in bytes):			349660		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman
Application No.: 12/276,567
Filed: November 24, 2008
For: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

Confirmation No. 4351
Group Art Unit: 3636
Examiner: Milton Nelson, Jr.

Date: April 27, 2011

Mail Stop AF
Commissioner for Patents
Box 1450
Alexandria, VA 22313-1450

SUPPLEMENTAL INFORMATION DISCLOSURE STATEMENT

Sir:

Attached is an Information Disclosure Statement listing of documents, together with a copy of any listed foreign patent document and/or non-patent literature. A copy of any listed U.S. patent and/or U.S. patent application publication is not provided herewith in accordance with 37 C.F.R. § 1.98(a)(2)(ii).

☐ In accordance with **37 CFR 1.97(b)**, the Information Disclosure Statement is being filed:

- ☐ (1) within three months of the filing date of a national application other than a continued prosecution application under §1.53(d);
- ☐ (2) within three months of the date of entry of the national stage as set forth in §1.491 in an international application;
- ☐ (3) before the mailing of a first Office Action on the merits; or
- ☐ (4) before the mailing of a first Office Action after the filing of a request for continued examination under §1.114.

☐ In accordance with **37 CFR 1.97(c)**, the Information Disclosure Statement is being filed after the period specified in 37 CFR 1.97(b) above, but before the mailing date of any of a final action under §1.113, a notice of allowance under §1.311, or an action that otherwise closes prosecution in the application, and is accompanied by **one** of the following:

☐ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ Each item of information contained in the Information Disclosure Statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the Information Disclosure Statement; **or**

☐ No item of information contained in the Information Disclosure Statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the Information Disclosure Statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the Information Disclosure Statement; **or**

☐ (2) The fee set forth in §1.17(p);

☒ In accordance with **37 CFR 1.97(d)**, the Information Disclosure Statement is being filed after the period specified in 37 CFR 1.97(c) above, but on or before payment of the issue fee, and is accompanied by **both** of the following:

☒ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ That each item of information contained in the Information Disclosure Statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the Information Disclosure Statement; **or**

☒ That no item of information contained in the Information Disclosure Statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the Information Disclosure Statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the Information Disclosure Statement; **and**

☒ (2) The fee set forth in §1.17(p);

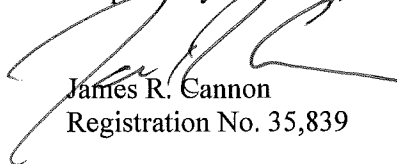
In accordance with **37 CFR 1.97(g)**, the Information Disclosure Statement shall not be construed as a representation that a search has been made.

In accordance with **37 CFR 1.97(h)**, the Information Disclosure Statement shall not be construed to be an admission that the information cited in the statement is, or is considered to be, material to patentability as defined in §1.56(b).

☒ The Commissioner is hereby authorized to charge \$180.00 as fee specified in 37 C.F.R. § 1.17(p), and any fee deficiency or credit any overpayment, to Deposit Account No. 50-0220; **or**

☐ No fee is believed due. However, the Commissioner is hereby authorized to charge any deficiency or credit any overpayment to Deposit Account No. 50-0220.

Respectfully submitted,


James R. Cannon
Registration No. 35,839

Customer Number 20792
Myers Bigel Sibley & Sajovec, P.A.
P.O. Box 37428
Raleigh, NC 27627
Phone: 919-854-1400
Fax: 919-854-1401

CERTIFICATION OF ELECTRONIC TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on April 27, 2011.

Joyce Paoli



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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12/276,567

11/24/2008

D. Stephen Hoffman

4362-138

4351

20792 7590 05/25/2011
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

05/25/2011

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

**Supplemental
Notice of Allowability**

Application No.

12/276,567

Examiner

MILTON NELSON JR

Applicant(s)

HOFFMAN ET AL.

Art Unit

3636

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address--

All claims being allowable, PROSECUTION ON THE MERITS IS (OR REMAINS) CLOSED in this application. If not included herewith (or previously mailed), a Notice of Allowance (PTOL-85) or other appropriate communication will be mailed in due course. **THIS NOTICE OF ALLOWABILITY IS NOT A GRANT OF PATENT RIGHTS.** This application is subject to withdrawal from issue at the initiative of the Office or upon petition by the applicant. See 37 CFR 1.313 and MPEP 1308.

1. ☒ This communication is responsive to Applicant's IDS filed 4/27/11.
2. ☒ The allowed claim(s) is/are 1-12 and 15-25.
3. ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some* c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. ____.
3. ☐ Copies of the certified copies of the priority documents have been received in this national stage application from the International Bureau (PCT Rule 17.2(a)).
- * Certified copies not received: ____.

Applicant has THREE MONTHS FROM THE "MAILING DATE" of this communication to file a reply complying with the requirements noted below. Failure to timely comply will result in ABANDONMENT of this application.

THIS THREE-MONTH PERIOD IS NOT EXTENDABLE.

4. ☐ A SUBSTITUTE OATH OR DECLARATION must be submitted. Note the attached EXAMINER'S AMENDMENT or NOTICE OF INFORMAL PATENT APPLICATION (PTO-152) which gives reason(s) why the oath or declaration is deficient.
5. ☐ CORRECTED DRAWINGS (as "replacement sheets") must be submitted.
- (a) ☐ including changes required by the Notice of Draftsperson's Patent Drawing Review (PTO-948) attached
- 1) ☐ hereto or 2) ☐ to Paper No./Mail Date ____.
- (b) ☐ including changes required by the attached Examiner's Amendment / Comment or in the Office action of Paper No./Mail Date ____.
- Identifying indicia such as the application number (see 37 CFR 1.84(c)) should be written on the drawings in the front (not the back) of each sheet. Replacement sheet(s) should be labeled as such in the header according to 37 CFR 1.121(d).**
6. ☐ DEPOSIT OF and/or INFORMATION about the deposit of BIOLOGICAL MATERIAL must be submitted. Note the attached Examiner's comment regarding REQUIREMENT FOR THE DEPOSIT OF BIOLOGICAL MATERIAL.

Attachment(s)

- | | |
|---|---|
| 1. ☐ Notice of References Cited (PTO-892) | 5. ☐ Notice of Informal Patent Application |
| 2. ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | 6. ☐ Interview Summary (PTO-413),
Paper No./Mail Date ____. |
| 3. ☒ Information Disclosure Statements (PTO/SB/08),
Paper No./Mail Date <u>4/27/11</u> | 7. ☐ Examiner's Amendment/Comment |
| 4. ☐ Examiner's Comment Regarding Requirement for Deposit
of Biological Material | 8. ☐ Examiner's Statement of Reasons for Allowance |
| | 9. ☐ Other ____. |

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

INFORMATION DISCLOSURE STATEMENT BY APPLICANT <i>(use as many sheets as necessary)</i>				Complete if Known	
				Application Number	12/276,567
				Filing Date	November 24, 2008
				First Named Inventor	D. Stephen Hoffman
				Art Unit	3636
				Examiner Name	Milton Nelson, Jr.
Sheet	1	of	1	Attorney Docket Number	4362-138

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/MN/	2.	US-	6,840,575 B2	01/11/2005	Hesse	
/MN/	3.	US-	6,893,085 B2	05/17/2005	LaPointe et al.	
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FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No.	Foreign Patent Document	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
		Country Code, Number, Kind Code (if known)				

NON PATENT LITERATURE DOCUMENTS			
Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T

Examiner Signature	/Milton Nelson, Jr/	Date Considered	05/23/2011
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

PART B - FEE(S) TRANSMITTAL

Complete and send this form, together with applicable fee(s), to: **Mail** Mail Stop ISSUE FEE
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax (571)-273-2885

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

20792 7590 03/16/2011
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

(Depositor's name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/276,567	11/24/2008	D. Stephen Hoffman	4362-138	4351

TITLE OF INVENTION: GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	YES	\$755	\$300	\$0	\$1055	06/16/2011

EXAMINER	ART UNIT	CLASS-SUBCLASS
NELSON JR, MILTON	3636	297-08500M

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

- ☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached.
- ☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list

- (1) the names of up to 3 registered patent attorneys or agents OR, alternatively,
- (2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed.

1 **MYERS BIGEL SIBLEY**
& SAJOVEC

2 _____
 3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE

(B) RESIDENCE: (CITY and STATE OR COUNTRY)

Ultra-Mek, Inc.

Denton, North Carolina

Please check the appropriate assignee category or categories (will not be printed on the patent): ☐ Individual ☒ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

- ☒ Issue Fee
- ☒ Publication Fee (No small entity discount permitted)
- ☐ Advance Order - # of Copies _____

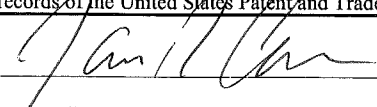
4b. Payment of Fee(s): (Please first reapply any previously paid issue fee shown above)

- ☐ A check is enclosed.
- ☐ Payment by credit card. Form PTO-2038 is attached.
- ☒ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number **50-0220** (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

- ☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27.
- ☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature 
 Typed or printed name **James R. Cannon**

Date 6/8/11
 Registration No. **35,839**

This collection of information is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

Electronic Patent Application Fee Transmittal

Application Number:	12276567			
Filing Date:	24-Nov-2008			
Title of Invention:	GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Joyce Paoli			
Attorney Docket Number:	4362-138			
Filed as Small Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Utility Appl issue fee	2501	1	755	755
Publ. Fee- early, voluntary, or normal	1504	1	300	300

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				1055

Electronic Acknowledgement Receipt

EFS ID:	10258568
Application Number:	12276567
International Application Number:	
Confirmation Number:	4351
Title of Invention:	GLIDING-RECLINING SEATING UNIT WITH POWER ACTUATOR
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138
Receipt Date:	08-JUN-2011
Filing Date:	24-NOV-2008
Time Stamp:	13:46:11
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$ 1055
RAM confirmation Number	36
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:

Charge any Additional Fees required under 37 C.F.R. Section 1.20 (Post Issuance fees)

File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Issue Fee Payment (PTO-85B)	4362-138.pdf	171266	no	1
			62d60c4d05b99b5751cd0da1ba2f05cd4c0bef1		

Warnings:**Information:**

2	Fee Worksheet (SB06)	fee-info.pdf	31574	no	2
			e70f0ddd469aee8b31d612ffe587c33583994178		

Warnings:**Information:**

Total Files Size (in bytes):			202840
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This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503.

New Applications Under 35 U.S.C. 111

If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371

If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.



UNITED STATES PATENT AND TRADEMARK OFFICE

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United States Patent and Trademark Office
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APPLICATION NO.	ISSUE DATE	PATENT NO.	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/276,567	08/16/2011	7997644	4362-138	4351

20792 7590 07/27/2011
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

ISSUE NOTIFICATION

The projected patent number and issue date are specified above.

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment is 275 day(s). Any patent to issue from the above-identified application will include an indication of the adjustment on the front page.

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Application Assistance Unit (AAU) of the Office of Data Management (ODM) at (571)-272-4200.

APPLICANT(s) (Please see PAIR WEB site <http://pair.uspto.gov> for additional applicants):

D. Stephen Hoffman, High Point, NC;
Marcus L. Murphy, Lexington, NC;

Attorney Docket No. 4362-138

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. S. Hoffman et al.

Serial No.: 12/276,567

U.S. Patent No.: 7,997,644

Filed: November 24, 2008

For: *Gliding-Reclining Seating Unit with Power Actuator*

Date: January 15, 2016

Mail Stop M Correspondence

Director of the USPTO

P.O. Box 1450

Alexandria, VA 22313-1450

PAYMENT OF DEFICIENCY OWED UNDER 37 C.F.R. § 1.28(c)

Sir:

Upon further examination of the above-identified patent, Applicant realizes that the maintenance fee may have been paid as a small entity in error. Applicant regrets this error (if any), which was made without any deceptive intent.

Pursuant to 37 C.F.R. §1.28(c)(2), the following information is set forth hereafter: 1) each fee that was erroneously paid as a small entity, including the fee paid and the date that the fee was paid; 2) the deficiency owed for each fee that was erroneously paid, including surcharge; and 3) the total deficiency payment owed.

Fee Paid	Date Paid	Amount Owed as Large Entity	Amount Paid	Deficiency
3.5 Year Maintenance Fee	16 Feb 2015	\$1600	\$800	\$800
			TOTAL OWED	\$800

The Commissioner is hereby authorized to charge \$800.00 (the deficiency between the amount paid and the amount due) to our deposit account number 50-0220. This amount is believed correct, however the Commissioner is authorized to

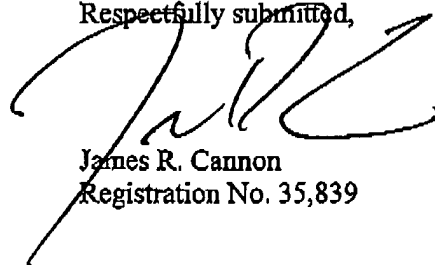
01/20/2016 MBANGURA 00000000 500220 7997644

01 FC:1599 800.00 DA

In re: D. S. Hoffman et al.
Serial No.: 12/276,567
U.S. Patent No.: 7,997,644
Filed: November 24, 2008
For: *Gliding-Reclining Seating Unit with Power Actuator*

charge any additional deficiency, or credit any overpayment, to our deposit account number 50-0220.

Respectfully submitted,



James R. Cannon
Registration No. 35,839

Myers Bigel Sibley & Sajovec, P.A.
P. O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401
Customer No. 20792

**CERTIFICATION OF FACSIMILE TRANSMISSION
UNDER 37 CFR § 1.8**

I hereby certify that this correspondence is being facsimile transmitted to the U.S. Patent and Trademark Office via facsimile number 571-273-6500 on January 15, 2016.

Signature: V. Katherine Barrow
Typed or Printed Name of Person Signing Certificate: V. Katherine Barrow
Date of Signature: January 15, 2016



MYERS BIGEL

PATENT LAWYERS | *When innovation demands expertise.*

FACSIMILE TRANSMISSION COVER SHEET

MYERS BIGEL SIBLEY & SAJOVEC, P.A.
4140 Parklake Avenue, Suite 600
Raleigh, NC 27612
Fax: (919) 854-1401 Phone: (919) 854-1400

To: USPTO

Company: Myers Bigel

Fax #: 1-571-273-10500

File Number: 4302-138

From: Katherine Barrow

Return Fax To: 919-854-1401

Date: January 15, 2016

Number of Pages including cover sheet: 3

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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE	REQUEST ID
12/276,567	11/24/2008	D. Stephen Hoffman	4362-138	10471

Acknowledgement of Loss of Entitlement to Entity Status Discount

The entity status change request below filed through Private PAIR on 01/15/2016 has been accepted.

CERTIFICATIONS:

Change of Entity Status:

☒ Applicant changing to regular undiscounted fee status.

NOTE: Checking this box will be taken to be notification of loss of entitlement to small or micro entity status, as applicable.

This portion must be completed by the signatory or signatories making the entity status change in accordance with 37 CFR 1.4(d)(4).

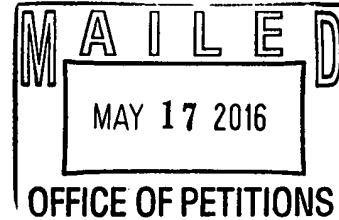
Signature:	/James R. Cannon/
Name:	James R. Cannon
Registration Number:	35839



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MYERS BIGEL & SIBLEY, P.A.
PO BOX 37428
RALEIGH NC 27627



In re Patent No. 7,997,644
Issue Date: August 16, 2011
Application No. 12/276,567
Filed: November 24, 2008
Attorney Docket No. 4362-138

NOTICE

This is a notice regarding your request, filed January 15, 2016, for acceptance of a fee deficiency submission under 37 CFR 1.28.

On September 1, 1998, the Court of Appeals for the Federal Circuit held that 37 CFR 1.28(c) is the sole provision governing the time for correction of the erroneous payment of the issue fee as a small entity. See DH Technology v. Synergystex International, Inc. 154 F.3d 1333, 47 USPQ2d 1865 (Fed. Cir. Sept. 1, 1998).

The Office no longer investigates or rejects original or reissue applications under 37 CFR 1.56. **1098 Off. Gaz. Pat. Office 502 (January 3, 1989)**. Therefore, nothing in this Notice is intended to imply that an investigation was done.

Your fee deficiency submission under 37 CFR 1.28 is hereby **ACCEPTED**.

This patent is no longer entitled to small entity status. Accordingly, all future fees paid in this patent must be paid at the undiscounted entity rate.

Applicant is reminded that pursuant to 37 CFR 1.28(c)(2)(i) "where a fee paid in error as a small entity was subject to a fee decrease between the time the fee was paid in error and the time the deficiency is paid in full, the deficiency owed is equal to the amount (previously) paid in error." If the itemization submitted with the present request does not comply with 37 CFR 1.28(c)(2)(i) because a fee has decreased, applicant should, within ONE MONTH of the date of this Notice, submit a renewed request for acceptance of a fee deficiency under 37 CFR 1.28(c) along with balance of the correct fee deficiency in compliance with 37 CFR 1.28(c)(2)(i) and a replacement itemized listing of each fee erroneously paid as a small entity in compliance with 37 CFR 1.28(c)(2)(ii). **NO EXTENSION OF TIME UNDER 37 CFR 1.136 IS PERMITTED.**

Telephone inquiries concerning this decision should be directed to the undersigned at (571) 272-0593.

/DeTya Flowers/
DeTya Flowers
Petitions Paralegal Specialist
Office of Petitions